

# DILLA UNIVERSITY



## SCHOOL OF LAW

**Examining Constitutionality of Finality Clauses under the Federal  
Democratic Republic of Ethiopia's Constitution: *The Case of Urban  
Lands Lease Holding Proclamation No. 721/2011***

**BY: ABDI TEMAM**

**ADVISOR: INSTRUCTOR MEKONNEN FELEKE [LLB, LLM]**

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**Declaration**

I Abdi Temam, hereby declare that this research paper is original and has never been presented in any other institution. To the best of my knowledge and belief, I also declare that any information used has been acknowledged.

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## **List of Acronyms**

**FDRE** Federal Democratic Republic of Ethiopia

**CCI** Council of Constitutional Inquiry

**HoF** House of Federation

**HPR** House of Peoples Representative

**Art** Article

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## **Abstract**

*No doubt, the judiciary, if not the only, is the proper custodian of the rule of law and individual rights. This happens only if it has the power to review, at least, acts of the executive for its compliance with higher laws. In Ethiopia, it is evident that an independent judiciary with all judicial function regarding justiciable matters is constitutionally established. It is however constrained from reviewing the constitutionality of laws of any type. However, the border of its power vis-a-vis the House of Federation is beyond clarity and its independence is compromised by the acts of the legislature.*

*Land right is essential in human life. It is because of this fact that land is given higher value compared to other properties. In this regard, particularly in Ethiopia, peoples give prior option to acquire land more than other properties.*

*Having regard to the value land has for the community, in the present Ethiopia, land is not transferable to third party through sale contract. This is because the owners of the land are the government and the community at all. According to article 40(3) of the FDRE Constitution, land is belonged to the nation, nationalities and peoples of Ethiopia. However, the Urban Lands Lease Holding Proclamation 721/2011 in cumulative with article 40(8) of the Constitution and article 3 of the Expropriation Proclamation no. 4555/2005 allows the government to act on behalf of the peoples and whenever circumstances necessitates to expropriate urban land for public welfare and to this effect even to use proportional force to clear the land and to lease for investors give for public purposes like health care centers schools and extra provided that equivalent substitution of land and compensation is paid for that individual who is evicted. These proclamations have had constitutional bases in empowering the government to expropriate urban land whenever it is necessary for the development of the country.*

*Though the above mentioned proclamations have constitutional base, they empower the government agency to decide on issues of land expropriation and states that the decision of the tribunal is final regarding substitution of the land expropriated. This makes the individual who is evicted from his land not to appeal though he/she is aggrieved by the decision of the tribunal.*

*Finality clauses restrict the jurisdiction of the courts to involve in interpreting laws and give effect to the law. Beside this, finality clauses restrict the right of the individuals to access justice whenever the matter is justiciable. The judiciary is left with no power, except when the other two branches will, thus no constitutional guarantee of judicial protection of rights. The effect is worst that rights entrenched in the constitution are made be deprived by ordinary legislations and subordinate laws. The confusion continues between constitutional supremacy and de facto supremacy of the legislative and executive organs.*

*Key words: administrative remedy; constitution; expropriation justiciable matter; land rights; urban land.*

# Chapter One

## General Overview of the Study

### 1.1 Introduction

Land expropriation is a recent phenomenon in Ethiopia. Having constitutional base, the Urban Lands Lease Holding proclamation No. 721/2011 and the land expropriation proclamation No. 455/2005 empower the city administrations respectively to administer urban lands in Addis Ababa and Dire Dawa and the Regions.

Pursuant to these proclamations in particular the urban lands lease holding proclamation the respective agency had empowered to clear urban land and to expropriate it. Moreover, the proclamation under article 29(3) clearly states that, the decision of the tribunal except for those issues which relates to compensation, on issues of law and facts including claims for substitute land shall be final. As per article 29(4) of the same proclamation, it is only issues of compensation which the individual is entitled to lodge appeal to court.

Although judicial power is constitutionally vested on court in Ethiopia<sup>1</sup>, it is being challenged by the increasing trend of promulgating ouster legislations and subsequent confirmation of such laws by decision of the federal Supreme Court Cassation bench and Council of Constitutional Inquiry (CCI)<sup>2</sup>. By interpreting ouster laws as laws that makes constitutional right non-justiciable. The concept of justiciability is used as a tool to divest judicial power from courts thereby leaving individuals with no remedy from courts when their rights are violated by administrative agencies<sup>3</sup>.

Though appeal right is constitutional and constitutionalism and constitutional supremacy is nothing unless, there is autonomous judiciary and the rule of law requires the existence of an independent judiciary which is assumed to be impartial organ with a power of invalidating laws when they are not compatible with the individual rights as recognized by supreme law<sup>4</sup>.

Different countries put some limitations on the power of courts through their constitution. For instance the USA constitution limits the jurisdiction of courts only to cases and controversies thereby constraining them from giving advisory opinion and hearing hypothetical cases<sup>5</sup>. Similarly the FDRE Constitution imposes limitation on the power of courts to interpret the

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<sup>1</sup> See article 79(1) of the Constitution the Federal Democratic Republic of Ethiopia, proclamation No. 1/1995(herein after referred as the FDRE constitution)

<sup>2</sup> Yemane Kassa, Dealing with Justiciability: in Defense of Judicial Power in Ethiopia, Mekelle University Law Journal Vol. 3, No. 1(2015). (Herein after referred as Yemane Kassa)

<sup>3</sup> Ibid.

<sup>4</sup> Brian Z. Tamanaha, on the Rule of Law: History, Politics, Theory(1<sup>st</sup> ed.2004),p 63-64(as cited by Yemane Kassa)

<sup>5</sup> Yemane Kassa

Constitution by giving this authority to the House of Federation (HoF) and the CCI to support HoF<sup>6</sup>.

Even though in Ethiopia, the House of Peoples Representative (HPR) is the highest organ of the government<sup>7</sup>, its power is subject to the supremacy of the constitution. This is because of the fact that as per Article 9(1) of the constitution, any laws which are in contradiction to it are null. Thus, constitutionally speaking, the HPR cannot enact laws which are contrary to the constitution, because there is no clear provision in the constitution that allows the HPR to restrict the power of the judiciary while making laws. In addition to this, since it is the constitution which establishes both the legislator and the judiciary, and separation of power is very important constitutional rule, the parliament cannot intervene in the power of the judiciary to interpret laws by putting finality clauses in laws.

This being the case, today there are many laws legislated by the HPR which remove or partially limits the jurisdiction of the courts and this trend is increasing and in turn purporting the constitutional power of courts to interpret laws and thereby relinquishing individuals from their right to present their complain before court and seek remedy after exhaustion of administrative remedies whenever available.

As per Article 37 of the constitution, individuals have constitutional right to bring any justiciable matter before court in order to get remedy for their rights which are violated. On the other hand the urban lands lease holding proclamation restricts the courts constitutional power to interpret the law and at the same time relinquish individual's right to access to justice.

This research argues that whether the parliamentary trend of promulgating laws which have finality (ouster) clauses are in contradiction to the constitution, in a sense that it limits constitutional power of the court to interpret laws and at the same time by taking away the constitutional right of individuals to bring matters which are justiciable before the court.

Throughout this research the writer uses different journals, laws including FDRE constitution with deep analyses in order to demonstrate his argument with clear finding. Thus, the researcher tries to support his findings with legal grounds and intends to show unconstitutionality of finality clauses under the FDRE constitution particularly that of the urban lands lease holding proclamation no. 721/2011.

## **1.2 Back Ground of the Study**

While, the writer was taking the course "land law" in second semester of second year in 2013/14 there was a hot class discussion on the issue that, whether the parliament has a constitutional power to oust courts from entertaining some issues like that of the case of urban lands lease holding proclamation. From that onward, the researcher was thinking about writing an article on the issue but not yet. However, after two years passed, when we are required to write a paper and

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<sup>6</sup> Article 62 of the FDRE constitution

<sup>7</sup> Ibid. Article 50(3)

submit a research title for partial fulfillment of LL.B degree in law the researcher understands that he can make findings showing that finality or ouster clauses are against the FDRE constitution by ousting courts from their constitutionally given power of interpreting laws and at the same time it restricts individuals from bringing cases to courts, impartial organ, and get remedy in case they are aggrieved by decisions of tribunals after having exhaustion of internal remedies if available.

The writer also understands that, land rights are essential and claims related to land rights should be heard by independent judicial organ which is undoubtedly to be court rather than tribunals which are part of political organ(executive bodies), provided that administrative remedies are exhausted. After deeply looking at the problem created by ouster clauses the researcher understands that there is no research conducted before, on the problem. Having this in mind the writer was inspired to conduct this study.

### **1.3 Statement of the Problem**

The FDRE constitution clearly vested the judicial power on courts at regional and federal level<sup>8</sup>. Beside this the constitution gives the parliament the power to enact laws regarding administration of land. The power of the HPR further includes enacting laws on the expropriation of the same. It is based on this authority that recently in 2011 Gregorian calendar the HPR legislated a proclamation named as “Urban Lands Lease Holding Proclamation No. 721/2011”. This proclamation contains a finality clause ousting the courts from entertaining their constitutional authority, restricting the individual’s right to appeal, and judicial review by partial courts. Whether the court stripping laws in general and the urban lands lease holding proclamation in particular is constitutionally legitimate when they are seen from the values of constitutionalism and the rule of law, and the FDRE constitution in particular.

It is argued that there must be some limitation up on the power of the courts. However, it is also argued that this limitation must have constitutional base. Especially in the parliamentary system of government like Ethiopia in which the parliament is recognized to be the highest of all organs of the government, allowing the parliament to put ouster clauses in the process of making laws is crucial, making the courts out of power of interpreting laws. It will also make hardship for individuals to seek remedies from courts, after exhaustion of administrative remedies.

If this is so from where did the HPR got its power of ousting courts from interpreting laws as courts are constitutionally empowered to do so? Therefore, this research attempts to examine whether the act of HPR is in contradiction to the FDRE Constitution. In order to address this issue, this research tries to answer the following questions:

- Who has the power to determine the jurisdiction/power of courts in Ethiopia?
- Can the constitutional right of citizens to have access to justice in a court of law be limited/denied by subordinate laws?

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<sup>8</sup> The FDRE constitution Article 79(1)

- Being the highest organ of the government can the HPR put finality clauses upon enacting laws?
- Is it constitutionally possible for the HPR to restrict individual rights to bring justiciable matter to the court?
- Without constitutional guarantee can the parliament restrict the jurisdiction of courts to interpret laws?
- What problems are there because of inclusion of finality clauses in laws?
- Most important is, what is the practical response of our courts and other pertinent government institutions to such judicial stripping laws?

## 1.4 Objective of the Study

There are some laws enacted by the HPR which have ouster clauses in their provisions. The urban lands lease holding proclamation No. 721/2011 is one of such laws. The objective of the study is to examine the constitutional validity of the various judicial stripping laws in general and the urban lands lease holding proclamation No.721/2011 in particular when seen in light of the constitutional mandate of courts under the FDRE constitution and other principles of constitutionalism. Though the expropriation and the administration of land have constitutional ground, the constitution does not allow the parliament to limit the jurisdiction of courts to entertain cases and as well to deprive constitutionally guaranteed right of individuals to bring a justiciable matter before court. This study assesses to what extent these ouster clauses affect the independence of the judiciary. Thus, the aim of this research is examining and critically analyzing the constitutionality of finality clauses under the FDRE constitution, specifically that of urban lands lease holding proclamation No. 721/2011. In particular this research seeks to:

- Examine if there is any constitutional authority for the legislative and executive organs to determine jurisdiction of courts in Ethiopia;
- Investigate the constitutionality and legitimacy of ouster clauses in Ethiopia;
- Analyze the constitutional legal limit of ouster clauses;
- Explore the effect of the proclamation on citizens' right to have access to justice and the scope of such right;
- Examine, compare and contrast constitutional supremacy versus parliamentary supremacy;
- Analyses the urban lands lease holding proclamation in line with the FDRE constitution;
- Recommend what remedies should be taken by HPR, CCI and Courts for better protection of land right and access to justice for individuals in Ethiopia.

## 1.5 Scope of the Study

The scope of the study is limited to the appraisal of the various laws having ouster clauses in general and the urban lands lease holding proclamation in particular in light of the constitutionally vested power of the Judiciary and the protection as well as entrenchment of fundamental rights under our constitution.

This research covers the problems that may arise because of inclusion of finality clauses under laws. However this study does not primarily raise all laws which have finality provisions. Specifically this research deals with urban lands lease holding proclamation No. 721/2011 with its fate in the light of the FDRE constitution. The study does not try to examine former legislations, since it is limited to the urban lands lease holding proclamation which is in force at present time.

Thus, this study is intended to analyze the provisions of the FDRE constitution and that of the urban lands lease holding proclamation in line with parliamentary restrictions of judicial power and at the same time limiting individual right to bring justiciable matter to court.

## **1.6 Research Methodology**

To achieve its objectives this study emphasizes on analyses of relevant laws such as the constitution and urban lands lease holding proclamation No. 721/2011, the expropriation proclamation and the FDRE constitution. It also examine available and relevant literatures that inclusively deals with land right, justiciability, appeal right and judicial review of the decision of administrative agencies and tribunals in regard with defending judicial power vis-à-vis ouster clauses. Thus, it relies on international human right instruments, books, articles and journals, studies that have relevancy to this research. Beside these materials internet sources and commentaries will be used as an ingredient to this study.

In addition, practical jurisprudences of other countries in dealing with finality clauses and courts jurisdiction had been analyzed. Thus, the approaches followed by other countries will be discussed in order to comment on our countries approach. Therefore, the study used non-conventional research method, just by analyzing written laws and materials in order to solve the problems discussed above under the title “statement of problem” and come up with practical and logical conclusion which assumed to give effect to this study.

## **1.7 Significance of the Study**

Although there is a literature on judicial independence, separation of powers, and other related areas, specific and in depth study has not been made so far concerning the various laws, in particular the new urban lands lease holding proclamation No.721/2011, which divest the judiciary of its power under the constitution. Thus, the study will contribute to the literature on the subject and highlights on whether or not the various (primary/subordinate) laws that partially or totally limit the constitutional mandate of courts are constitutionally legitimate.

This study will have some legal significance. This significance relates to the implementation of the constitution i.e. supreme law of the land. It primarily tries to show that in Ethiopian legal system, finality clauses are against the constitution, because finality clauses derogate individual’s right to access justice; makes the parliament tyrant; gives the judiciary no power. Thus practical application of this study will make those laws which have finality clause null and void in general and that of urban lands lease holding proclamation No. 721/2011 in particular.

Moreover, the practical application of this study will protect individual's right to access justice so that the impartial courts will hear their grievance after the exhaustion of administrative remedies. Thus, this studies fruit is to enable individual to lodge their complainant to appellate courts having jurisdiction whenever there is justiciable matter.

Generally speaking, this research will have the following significances:

- It is hoped that this research will serve as a tool to remind the HPR that their act is making the judiciary's power dependent on their will;
- It will create awareness among the citizens that their constitutional right to bring justiciable matter is going to be taken by the act of the parliament;
- Courts will realize that their constitutionally established power to interpret law is being reduced and intervened by the act of HPR;
- It will encourage others to conduct more studies on the subject matter and will be used as a material for researchers and can be cited as secondary sources for students.

### **1.8 Limitation of the Study**

There are some challenges the writer came across, while preparing this paper. The first limitation is lack of written materials which are relevant to the subject matter. The writer tried to use some internet sites in order to curb this problem. In this regard lack of internet connection which is cost-expensive is the most vulnerable challenge the writer experienced. The second challenge is lack of previous experience in conducting research. The writer is new for research paper except for term paper for assignments as part of continuous assessment. The last and most challenging problem is lack of financial resources.

### **1.9 Organization of the Study**

This research paper is organized in to five chapters. The first chapter is all about general overview of the study which includes introduction, background of the study, research methodology, and significance of the study, limitation of the study and organization of the study.

The second chapter discusses the concept of Rule of Law, Separation of Power, and Finality (ouster) Clauses and their effect in light of ousting court's jurisdiction in general. To address this problem (issues) that finality clauses ousts courts from exercising their power, whether courts power could be undermined by subordinate legislations will be dealt under this chapter. This chapter is more of broad analysis of literature on the subject matter.

Under the third chapter, arguments with Judicial Power and Constitutional Limits on Judicial Review will be discussed in light with the land right. Under this chapter issues like scope of constitutional limits on judicial review and that of legislative limits on judicial review is deeply dealt with.

The fourth chapter deals with the relationship between Access to Court and Justiciability. Under this chapter the concept of Justiciability is discussed in light with court stripping laws particularly that of urban lands lease holding proclamation.

The last chapter is devoted to give general conclusion and couple of recommendations. This chapter tries to give possible measures that must be taken by the parliament, the courts and CCI, and citizens. Therefore, this chapter dealt with the way-out forwarded and conclusion.

## Chapter Two

### Rule of Law, Separation of Power, the Judiciary and Finality/Ouster Clauses

#### 2.1 The Rule of law

##### 2.1.1 Historical Background

The rule of law as a political concept has an ancient origin which is believed to exist since the time of ancient Greece<sup>9</sup>. However, the contribution to the rule of law is not limited to the Greece rather the ancient Romans have also contributed a lot to the development of the rule of law<sup>10</sup>. Despite many accounts of the rule of law trace its origin to classical Greeks and Romans thought, its development continued to be relatively undermined during the early medieval periods. According to some writers, Magna Carta is however, one of the historical documents in the medieval period that contributed to the development of the rule of law and symbolized the fact that the law protects citizens against the tyranny of kings<sup>11</sup>.

In the modern times, the rule of law continued to be famous political issue yet the determination of its precise meaning and scope is unsettled. Though the concept is essentially a contested area, it has been unanimously advocated by governments from different ranges of societies, culture, economic and political situations. According to Tamanaha, the rule of law appears as the preeminent legitimizing political ideal in the world today, in which most of governments in the world, from the west to socialist, totalitarian to democrats, and developed to developing, plead in the name of the ideal, and it is claimed that none make a statement rejecting the rule of law<sup>12</sup>. One can infer from this unanimity of support that the importance of compliance with the rule of law for government legitimacy, in addition to protecting rights and freedoms.

Although theoretically idealized as a universally agreed standard, the rule of law, implicitly or explicitly, involves contrasting meanings over it. For instance, some argue that the rule of law requires the protection of individual rights others believe that democracy is part of it and many still argue that the rule of law is only and purely formal (that requires laws must be generally set out in advance, clearly, stable and be applied equally to all)<sup>13</sup>. The contrasting meanings over the ideal is said to be emanated because of the rule of law becomes a system dependent notion as a result of the deceptive and narrow perceptions it used to have<sup>14</sup>. Thus it is difficult to deal with the extent and scope of the rule of law and more so if substantive values of laws are required to be addressed. Moreover, the rule of law has been narrowly understood in a sense that government power must be limited by law and subject to it. However, the rule of law taken broadly also means that people should obey the rule and be ruled by it. From the historical aspect

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<sup>9</sup> F. A. Hayek, *the Constitution of Liberty* (1959) Chicago, (as cited by Yemane Kassa)

<sup>10</sup> Ibid

<sup>11</sup> William S. McKechnie, *"Magna Carta: a Commentary on the Great Charter of King John"* 2nd ed. 2000, 120-123

<sup>12</sup> Brian Z. Tamanaha, *"On the Rule of Law: History, Politics, Theory"* (1st ed. 2004) p.7 (herein after, Tamanaha).

<sup>13</sup> Richard Bellamy, *"the Rule of Law and Separation of Powers"* (2005) 96

<sup>14</sup> Joseph Raz, *"the Rule of Law and Its Virtue"* (2nd series, 2005) 78 (herein after, Joseph Raz)

discussed above however, the rule of law was understood more on its substantive version. Accordingly, the rule of law requires that any government action should be based on the law and such law should be obeyed only when it is a good law. That is to say, a law, in order to comply with the rule of law, must be fair and beneficial to the society. In general, the different understandings over the rule of law can be viewed from two perspectives; the formal conception of the rule of law and the substantive conception of the rule of law. Thus, below an attempt is made to analyze the rule of law as perceived from both substantive and formal conception.

## **2.1.2 Conceptions of Rule of Law**

### **2.1.2.1 The Formal Conception of Rule of Law**

According to the formal conception, the rule of law is considered as law of rules with which one is expected to comply with no matter what these rules are.<sup>15</sup> This conception of the rule of law does not give concern to the actual content of the laws existing in a legal system. Nor does it provide a requirement as to how the law should be made; by tyrant, democratic majorities or any other ways<sup>16</sup>. This version of the rule of law in its extreme sense provides that whatever the government does, it should be based on predetermined laws no matter whether the content of the law is just or unjust.<sup>17</sup>

Another point is that, proponents of the formal conception of the rule of law considered the expansion of administrative functions as a result of the acceleration of the social welfare state is a threat to the rule of law. This is because, the administrative functions of a state increases necessarily calls for the grant of broad discretionary powers to government officials which is of course a danger to the rule of law, for the very purpose of the rule of law is restraining discretionary power of government. In this connection, Hayek was very skeptical that substantive equality and distributive justice which are usually employed by a welfare state inherently run against the rule of law for they inevitably treat people unequally<sup>18</sup>.

This is not, however, to mean that all advocates of the formal version of the rule of law disagree with the conferral of discretion to government. They agreed that government must be granted with discretion for purposes of convenience and efficiency but they contend that such power must be exercised with minimum coercion that has an impact on private citizens and their property which is possible only if the administrative legal rules possess the qualities of generality, certainty, equality together with the reviewability of such coercive powers by the judiciary which is claimed that this is too often absent<sup>19</sup>.

In this regard, one simply infer the fact that having administrative rules the quality of generality, certainty, and equality plays significant role in constraining the abuse of discretion. However,

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<sup>15</sup>Paul Craig, "Formal and Substantive Conception of the Rule of Law: Analytical framework" 2<sup>nd</sup> ed.(2007).

<sup>16</sup>Ibid.

<sup>17</sup> Ibid.

<sup>18</sup> F. A. Hayek, "the Constitution of Liberty" (1959) Chicago, (as cited by Yemane Kassa).

<sup>19</sup>Tamanaha

these qualities cannot be taken as enough guarantees of rights and freedoms even if there is a legal framework for the reviewability of the action of the government by an independent judiciary, unless and until the substantive content of the legal rules are designed in a way that constrain coercive power of the same. This is because, if the content of the law is unjust by itself, the formal requirements of the rule of law will not have any mechanism to guarantee rights.

There are arguments by many theorists that the formal conception of the rule of law in the modern day is in any event is unattainable and defective. Opponents of the formal version of the rule of law provide that this view of the rule of law as expounded by A.V. Dicey and more by Hayek is defective and may comply with the conception of the ideal even by authoritarian regimes. This is to say, a non-democratic legal system based on the denial of human rights, racial segregation, sexual inequalities, etc. may comply with the formal requirements of the rule of law (generality, certainty, clarity and prospectiveness)<sup>20</sup>. This is true if one looks at the situation where law is used by governments as an instrument of oppression like what is used by the Nazi in Germany and the pro-apartheid regimes in South Africa<sup>21</sup>.

Moreover, the formal view of the rule of law is criticized since it complies and ultimately reinforces the principle of legality in criminal cases which simply requires that laws must be prospective, certain, equally applicable, and decisions must be made according to predetermined principles of law while the rule of law in its substantive side is far beyond the principle of legality<sup>22</sup>.

### **2.1.2.2 The Substantive Conception of Rule of Law**

So many scholars with liberal conviction [advocates of the formal conception of the rule of law] wrote that the rule of law as an ideal denotes a “government of law”, whose laws are pre-established, certain, prospective, and equally applicable to all.<sup>23</sup> This still holds truth in it but what law is we are referring to as a “law”? A government may act in certain way which affects the freedoms and rights of individuals based on pre-established laws of parliament<sup>24</sup>. Does such act of government always hold legitimate and just when seen in light of the rule of law for the mere fact that the law is made based on the procedures and requirements suggested by advocates of the formal version of the rule of law? For one with the conviction of the formal conception of the rule of law, the answer is likely to be of two folds. For the question of legitimacy, the answer is yes because the law is made through appropriate procedures, by a competent authority, and possessing the qualities of a law under the formal conception. Concerning the justness of the law however, the answer is different. Advocates of the formal conception admit that laws which are consistence with the rule of law as perceived in its formal version may not be good

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<sup>20</sup>John De Waal, Iain Currie and Gerhard Erasmus, “*the Bill of Rights Handbook*” (4th ed., 2001) (herein after, John De Waal, et al)

<sup>21</sup>Assefa Fiseha, “the Concept of Separation of Powers and Its Impact on the Role of the Judiciary in Ethiopia” (2010) (herein after, Assefa Fiseha)

<sup>22</sup>John De Waal, et al,

<sup>23</sup>Yemane Kassa, “The Judiciary and its Interpretative Power in Ethiopia : *A Case Study of the Ethiopian Revenues and Customs Authority*”

<sup>24</sup> Ibid.

law.<sup>25</sup> However, for those with substantive view the response for the question raised above seems to be different and qualified.

Accordingly, advocates of the substantive conception, go beyond what is provided under the formal conception of the rule of law. In addition to the formality requirements, the rule of law should also require and determine the content of the law, i.e. whether the law is good or bad, whether or not it protects individual rights<sup>26</sup>. According to the substantive view understanding the rule of law from the formal conception view is imperfect and in many ways comply dictatorial regimes. The substantive perception of the rule of law better incorporates the classical understanding of the ideal in looking what the content of the law should be.<sup>27</sup> Aristotle in his classical work puts that the “laws, when good, should be supreme.”<sup>28</sup> In fact, determining how just is just is difficult question that one faces when dealing with the substantive content of the law. But if we make a recall to the classical conception of the rule of law, Cicero tries to determine the justness of a law. He proposed that a law is just if such law is made in compliance with natural justice.<sup>29</sup> For him, law is about making distinction between just and unjust based on the natural law principles and he argued that a law which is unjust is not a law.

The stand of advocates of the substantive version is that if adherence to the principles equal applicability, certainty, prospectiveness, predictability, and generality of laws are not irrelevant, they are not enough by themselves to control discretionary power of government and ensure the rule of law unless they are substantiated by substantive considerations. They further argue that the importance of looking at the content of the law when one deals with the rule of law.<sup>30</sup> They also argue that citizens have moral rights and duties against the state in general in which the latter is expected to recognize and protect their rights. The protection of the rights in turn requires one to specify what those rights are, which in fact involves the determination of substantive content and scope of those rights. Thus, they continue to question those with formal conception saying whether or not individuals will have a moral right, in a court of law, to receive what they demand if laws in country are fundamentally unjust.<sup>31</sup> After all, they argue, adjudication of cases, in particular common law adjudication, involves the application of rules and principles which will often requires courts recourse to consideration of substantive justice and fairness which is obviously beyond the formal conception of the rule of law<sup>32</sup>. From the foregoing discussion, it is sound to say that ensuring the rule of law involves addressing the substantive aspect of the law. The contents of a law in the substantive conception includes, protection and entrenchment of fundamental rights, justiciability of the rights before courts or similar institution, and the overall substantive fairness and justness of a law as measured by extra-legal principles and acceptable political ideals. Furthermore, it is claimed that

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<sup>25</sup> Joseph Raz, p. 79-80.

<sup>26</sup> Tamanaha.

<sup>27</sup> Tamanaha

<sup>28</sup> Ibid.

<sup>29</sup> Ibid.

<sup>30</sup> Hilaire Barnett, “*Constitutional and Administrative law*” (7th ed., 2009) as cited by Yemane Kassa, (herein after, Hilaire Barnett).

<sup>31</sup> Ibid.

<sup>32</sup> Ibid.

constitutional rights are better addressed within the substantive conception of the rule of law. Thus, by adhering to the formal requirements of the rule of law alone will make the protection of rights and controlling government power less achievable.

### **2.2.1. The Judiciary and the Rule of Law**

The rule of law, either in its substantive or formal conception, requires the existence of an independent judiciary, which is vested with the power to interpret the un/constitutionality of laws and government actions. Dicey, for instance considers the existence of an independent judiciary with the power to determine the rights of private persons in a case brought before them is the corner stone of the rule of law.<sup>33</sup> The role of courts in preserving the rule of law is paramount if one considers the proliferation of government functions in recent times in particular by welfare states which necessarily results in the conferral of broad discretionary powers to administrative agencies.<sup>34</sup> The conferral of discretion to administrative agencies in turn potentially and inevitably results in unreasonable violation of fundamental rights and freedoms.

The usual mechanism which is believed to serve the protection of fundamental rights and preserving the rule of law is judicial review of legislations and administrative acts for their constitutionality by an independent tribunal.<sup>35</sup> The power to review the constitutionality of legislations is vested on different institutions in different countries. In some countries such power is given to the Supreme Court, in others to special constitutional court, still others establish unique organs for the same purpose; yet referendum may be used as a means to react to the constitutionality of laws passed by the parliament.<sup>36</sup>

The judiciary is one of the main institutions of government in realizing the constraints of the constitution up on government. It is repeatedly said that the judiciary is established to serve as a counter majoritarian purpose. That is to say, the judiciary preserves the rule of law by declaring laws unconstitutional when they are found to be contrary to individual liberties recognized by supreme laws. This is possible only if there is an autonomous judiciary or similar organ with a power to test the constitutionality of laws and actions taken by the executive branches.

Therefore, the judiciary is considered as an ultimate guardian of the fundamental rights and freedoms by limiting the power of the majoritarian legislature through judicial review. However, it is also argued that the recognition of rights and the empowerment of the judiciary to question the constitutionality of legislations have antidemocratic implication. A question that often follow is that why should courts through their unelected [thus unaccountable] judges have the power to invalidate laws passed by democratically elected legislature?

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<sup>33</sup>Joseph Raz, p. 92

<sup>34</sup>Yemane Kassa.

<sup>35</sup> Ibid.

<sup>36</sup>Such power is given to the Supreme Court in the USA, India, and Canada; and to Constitutional Courts in Germany and South Africa while the Constitutional Council is serving the similar, purpose in France. In Ethiopia the power is given (arguably) to a second chamber, the House of Federation, as assisted by the Council of Constitutional Inquiry. Referendum is used usually in the Swiss jurisprudence to settle constitutional issues.

However, the following general justifications can be put in favor of judicial review. First, courts from the very outset are constitutionally designed to serve a counter majoritarian role.<sup>37</sup> Thus, entrusting the protection of individual rights to democratically elected body is self-defeating.

Constitutional interpretation by the courts does not by any means suppose the superiority of the judicial to the legislative power<sup>38</sup>. It is only the power of the people is superior to both; and that where the will of the legislature, declared in its statutes, stands in opposition to that of the people, declared in the constitution, the judges ought to be governed by the latter rather than the former<sup>39</sup>. They ought to regulate their decisions by the fundamental laws, rather than by those which are not fundamental. Thus, it could be said that the commitment to certain procedural and substantive requirements on the power of the majority that are inherent in constitutionalism make democracy stronger not weaker. However, the rule of law is endowed with conceptual independence from democracy in that it applies to and confronts with any form of power or government.<sup>40</sup> That is to say, the fact that, for instance, a given system ensures democracy may not necessarily secure the rule of law, for it is possible for some non-democratic governments to comply with the rule of law, especially in its formal version, better than those democratic systems.<sup>41</sup> This is not however, to mean that courts power to review legislations is without limit. It is agreed that the power of the judiciary to review the constitutionality of legislations must be exercised without usurping the inherent power of the law maker and to the extent necessary for the protection of fundamental rights and freedoms.

Judicial review of executive action may be contested at least for two reasons. One of the reasons is when there is court stripping law, i.e. when there is a legislative enactment which precludes courts from reviewing executive acts and decisions made within its internal appellate tribunals. Whereas the other reason is when there is standardless delegation by the legislature to the executive.<sup>42</sup> What follows from this is whether or not a law maker has a power to make laws which divest or at least compromise jurisdiction of courts to review executive action. What is worthy to note here is, an executive act are fundamentally subject to review of courts for their compliance with their parent legislation and the constitution.

### **2.2.2. The Rule of Law and the Separation of Powers**

The rule of law is an important requirement for the protection of individual freedoms and rights and advancement of limited governance. One of the various means of achieving these ends of the rule of law is the principle of separation of powers. Montesquieu advocated for the tripartite separation of powers among the three branches.<sup>43</sup> He was totally against the concentration of

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<sup>37</sup>Tamanaha

<sup>38</sup>Eugene V. Rostow, “*the Democratic Character of Judicial Review*,” Harvard Law Review (2003) as cited by Yemane Kassa

<sup>39</sup> Ibid.

<sup>40</sup> Richard E. Levy and Sidney A. Shapiro, “*A Standards-Based Theory of Judicial Review and the Rule of Law*” (2005) bepress Legal Series, P. 41 (herein after Richard E. Levy and Sidney A. Shapiro)

<sup>41</sup> Ibid.

<sup>42</sup> Richard E. Levy and Sidney A. Shapiro

<sup>43</sup> Barron De Montesquieu, “*Man and Society*” in Carl J. Friedrich (2<sup>nd</sup>ed) “*An Introduction to Political Theory*” (1967), (herein after referred as Montesquieu)

power in a single government branch because he had the fear that if any of government powers are blended together in one man, there is no liberty because the same organ makes tyrannical laws will execute them tyrannically.<sup>44</sup>

Liberty is threatened when one branch of the government acquires more than one of the powers of government and all the more so when it acquires all three of the powers; so that in order to have liberty it is necessary that law be made by a legislative body, but administered by a separate executive, and applied by an independent judiciary.<sup>45</sup>

Montesquieu insisted that, in order to promote accountability of government, and protect the fundamental freedoms of citizens from the arbitrary will of the government it is essential to keep separate the legislature's power to make laws, from the executive's power to administer laws, and the judiciary's power to hear disputes according to the law.<sup>46</sup> Interestingly, he argued that it is not correct to say that freedom is greater for the mere fact that the rulers have small power rather it depends on how power is distributed and limited.<sup>47</sup>

Though the doctrine of separation of powers assigns the three powers to three distinct government branches, such separation of powers is not intended to be air-tight instead some degree of checks and balance within each branch is necessary. James Madison in his federalist paper provides that the separation of powers as expounded by Montesquieu is not a hermetic separation of government departments but the different branches were allowed to have a "partial agency" or control over each other so long as the whole power of one department was not in the same hands which possess the whole power of another branch.<sup>48</sup> Thus, for it is not possible, and of course unnecessary, to have a flawless, strict separation of powers, certain degree of interaction among the government branches is warranted.

Many constitutional law scholarships today submit that the principle of separation of powers is at the heart of the rule of law and constitutionalism. This is because it serves various values of the rule of law of which the following are most important value. The first value is that separation of powers serves guarding against government tyranny. A tyrannical government is a government with unconstrained coercive authority that retains the power to limit popular choice.<sup>49</sup> Thus, separation of powers provides a structural guarantee of citizens where by government authority is constrained and reduced by dividing it among the different branches yet with some degree of check and balance among themselves.<sup>50</sup> Another crucial value which emanates from the fundamental principle of the rule of law is the doctrine of separation of powers that, prevents arbitrary government. Even though the rule of law have various connotations and meanings for the reasons already discussed above, at its bottom it reflects a core requirement of legal

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<sup>44</sup>Ibid.

<sup>45</sup> Ibid.

<sup>46</sup>Ibid.

<sup>47</sup> Ibid.

<sup>48</sup> James Madison, "The Federalist Papers" (1961) (herein after referred as James Madison)

<sup>49</sup>Yemane Kassa.

<sup>50</sup> Ibid.

regularity under which government actors derive their authority from and are bound by the law. Whether the government actors are acting within the authority they are given by the law or general principles of law is to be determined, not by those bodies in question, but by independent government organ, (the judiciary), which can be better upheld within the separation of powers principle.

The third point where the separation of powers serves the ends of rule of law is ensuring the independence of the judiciary, which is considered as guardian of the rule of law. This is because the separation of powers protects the judiciary against interference from the other branches. Fourthly, the ideal defends against legislative supremacy. It is evident that the legislature, though following the formal democratic procedures, may issue laws that have negative impact on fundamental rights or interest of individuals. Finally, it promotes government efficiency, since there is division of function and no branch is allowed to interfere in the affairs of the other.

However, it is important to note that although the theory of separated powers is sustained by the rule of law, the rule of law can exist without the need to strict adherence to separation of powers. Regarding this, it is stated that “separation of powers” is not an end by itself rather is a means to an end, (liberty).

### **2.2.3. Judicial Review and Separation of Powers**

In the preceding discussions, the role of judicial review and separation of powers in ensuring and preserving the rule of law and individual liberties is briefly established. Thus, what contributions these principles owe each other will be discussed below. This is because there is an argument that judicial review may end up to be intrusive of the doctrine of separation of powers while there is a related conception which says that separation of powers contains mechanisms necessary to ensure the rule of law of which judicial review is the one.<sup>51</sup>

It is taken for clear that the independence of the judiciary in any system is a critical aspect of whether the system will abide by the rule of law and recognize human rights. Constitutionalism and constitutional supremacy is nothing unless there is an independent judiciary established to enforce these constitutionally provided citizen’s rights. The rule of law requires the existence of an independent and impartial organ, usually the judiciary, with a power of invalidating legislations when they are not compatible with the rights of individuals as recognized by supreme law.<sup>52</sup> The importance of both in relation to government according to law and in the protection of individual’s right against the executive is the basic feature of judicial independence. This independence of the judiciary is usually manifested through the appointment, salary, tenure, removal of the judges and the budget allocated to the institution. The independence of the judiciary can only be realized if the judiciary is functionally, institutionally, and in its personnel kept separate from the legislative and the executive organs.<sup>53</sup> This is possible only when there is

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<sup>51</sup>Hilaire Barnett.

<sup>52</sup>Yemane Kassa

<sup>53</sup> Ibid.

genuine adherence to the principle of separation of powers by all organs of government. On the other hand, a threat to separation of powers may arise when a branch increases its power by encroaching up on or usurping functions that are more appropriately performed by another branch.<sup>54</sup> Any threat on separation of powers, therefore, can be regarded as a threat posed on the independence of the judiciary the effect of which is the deterioration of the judicial function in reviewing acts of other government organs. It is important to note here that it is the constitutionally mandated independence that makes the choice of the judiciary to hold the Executive Branch in check (through review) legitimate than the appellate tribunals within the executive.<sup>55</sup>

Despite the fact that separation of powers contributes a lot in realizing the practicability of judicial review by ensuring the independence of the judiciary, there is an argument which provides that the empowerment of the judiciary to review the compatibility of laws and acts passed by the other branches with a supreme law violates the principle of separation of powers. Moreover, it is said that when, for instance, a reviewing court struck down the application of a legislation, it is in effect involving in determination of policy issues of a legislation which is an appropriate task of the legislature.

It is argued that certain degree of judicial deferral to the decision of the other branches of government is important. Considering the legislative and executive spheres to meet the exigencies and activities of modern government, and recognizing the presumption that the legislature is deemed to be better equipped to address questions of significant social and political policy choices than the judiciary, requiring the judiciary to exercise certain degree of self-restraint is justified.<sup>56</sup> If not, vesting courts with review power may result in unnecessary judicial activism also called “Judicial tyranny” whose consequences may be seen from two angles.<sup>57</sup> Firstly, it may be used against the democratic institutions since the court in this regard is vested with a power to invalidate acts of these democratically elected branches, thus ultimately runs against the separation of powers. Second, and most compelling, it may result in judicialization of politics, a situation where political and some social questions may be considered to be judicial question, *albeit* such questions would have been properly solved through political checks and negotiations.

However, these facts are far away from establishing a firm claims that judicial review always run against the principle of separation of powers. If separation of powers is intended to result in preserving individual rights and freedom, there shall be a conflict or contest among and between the different branches of government. The doctrine of separation of powers does not require a complete division of the three government powers rather allows each branch to have a limited amount of control over another (through check and balance).<sup>58</sup> In the absence of such tolerable

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<sup>54</sup> Ibid.

<sup>55</sup> Richard E. Levy and Sidney A. Shapiro

<sup>56</sup> Hilaire Barnett, p-174

<sup>57</sup> Ibid.

<sup>58</sup> James Madison, p331

contest between the branches, the principle may easily end up in creating legislative, executive or judicial tyranny for it is high likely that any of the branches becomes with an overwhelming power to influence the other branches.

Besides, it is argued that the principle of separation of powers is considered as one ground for judicial review by courts. Regarding this, Neuborne argues that it is possible to have a “separation of powers theory based judicial review” which is capable of protecting important substantive values without being against, not only democratic values, but also separation of powers.<sup>59</sup> According to the theory, the reviewing court is required to rely on the separation of powers for its review task and it is required to review legislations only when there is attempt by the government to act in a way incompatible to certain “fundamental values”.<sup>60</sup> Accordingly, separation of powers should not always be considered as exposed to potential violation by courts, rather as one ground for reviewing courts to be used in protecting fundamental values as well as the ideal itself. Separation of powers based judicial review reinforces democratic values.

From the overall discussion it is simple to deduce that judicial review and separation of powers, if consumed carefully, are mutually inclusive and serve the same end, the rule of law. Thus, what kinds of review powers by courts are considered to be in excess of the normal tolerable checks under the doctrine remains to be crucial in deciding whether judicial review is against the principle of separation of powers though determining the threshold is not easy task.

### **2.3. Separation of Powers in Parliamentary Systems**

Before directly rushing to the application and relevance of the doctrine in parliamentary systems, it is time to deal on the basic differences between presidential and parliamentary systems of government so that a clear path of the possible limitation on application of the ideal in parliamentary systems will be established. Many differences can be mentioned but the most important are the followings. First, in parliamentary systems the government (chief executive) is elected by the parliament (whose members are directly elected by citizens) where as in presidential systems, the executive (president) and the legislature are elected in separate and independent elections by citizens. The effect of this is that the executive in parliamentary systems needs to secure parliamentary (legislative) confidence in order to survive while this is not necessary for the president in the presidential systems. The second difference is that in parliamentary systems executive power is usually vested in the prime minister, while executive power in presidential systems is vested on the president.

Thirdly, the parliament is usually put as supreme over the other branches in parliamentary systems where as in presidential systems the presumption is the three government organs are coordinate. Finally, in presidential systems the president is forbidden from sitting in the legislative chamber while the prime Minister or/and cabinet can sit. These are not the only differences. There are other differences such as presidential systems provide a fixed term for the

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<sup>59</sup>Burt Neuborne, “*Judicial Review and Separation of Powers in France and the United States*” (1982) New York University Law Reviews

<sup>60</sup>*Ibid.*

presidency but this is unusual in parliamentary systems and the power of the chief executive is dependent on the will of the parliament.

Having, said so on the differences between the two systems, let us turn to the main issue under this section. It is being discussed that the principle of separation of powers serves various values with a view of avoiding tyranny and preserving liberty. In its classical formulation, the separation of powers requires the existence of three distinct government functions; the legislative, executive and judicial which are vested to three separate departments, the legislature, the executive and the judiciary.<sup>61</sup> Accordingly, the doctrine is deemed to be designed in a way that each branch will have certain degree of “control” over the other which we used to say check and balance. However, it is difficult to expect the application of the doctrine in parliamentary systems in the fullest sense. There is a long held argument that the doctrine of separation of powers best fits, even is unique to, and its purposes are best served in presidential systems.<sup>62</sup> This assertion is made based on the adherence to strict separation of powers doctrine which requires the existence of three branches of government having the same constitutional status. The argument has truth in it since the theory requires the three branches of government to be entirely separate in both personnel and function with some degree of checks and balance which is better achievable in presidential systems. However, the separation of power may exist only as between the executive and the judiciary, not the legislature vis-à-vis the other two branches, because in most cases these organs are subordinate to the legislature and the executive and the legislature are fused in real sense. Most ministers sit in the parliament which is against the separation of membership of the organs. In fact, in most parliamentary systems, including the UK, there is no fusion of power between members of the legislature and the judiciary.<sup>63</sup> But so long as the parliament is supreme it is less probable that there is separation of powers principles for the judiciary cannot check the legislature’s acts.

What may follow from the above fact is, if genuine principle of separation of powers is to be found only as between the executive and the judiciary, genuine disputes related to separation of powers in such systems, in systems where parliamentary supremacy is firmly established, may arise only between the executive and the judiciary. This does not mean however that the doctrine does not have any value to serve in parliamentary systems.<sup>64</sup> Even though the executive and the judiciary, because of parliamentary supremacy, are put at subordinate position in the hierarchy of powers, parliamentary system does not exclude the principle of separation of powers.<sup>65</sup> Nor does it implicate that the values of separation of powers cannot be achieved in parliamentary systems. It is undeniable that there are threats on the values of separation of powers in such systems for there is a heavy reliance of the executive on the legislature for its political survival, and the executive’s power to dissolve the legislature which is totally absent in presidential systems. Not

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<sup>61</sup>Yemane Kassa.

<sup>62</sup> Ibid.

<sup>63</sup> Richard J. Cummins, “*the General Principles of Law, Separation of Powers and Theories of Judicial Decision in France*” (1986)

<sup>64</sup>Yemane Kassa.

<sup>65</sup> Ibid.

only this, the existence of fusion of power between the executive and the legislature since, in most cases, the executive cabinet are elected members of the legislature offers a weaker defense against abuse of political power than in presidential systems.

However, Parliamentary systems, though not fully, can serve the values of separation of powers as well.<sup>66</sup> This is because in such systems, by keeping at least the judiciary independent from the other two fused branches can limit arbitrary government there by preserving the rule of law; yet this is possible only if there is no parliamentary supremacy.<sup>67</sup> In the existence of parliamentary supremacy, it is not easy to protect the judiciary from the legislature and in such case it will be difficult for the judiciary to keep the parliament in check.

In fact, there is an argument which provides that the separation of the judiciary from the other branches does not serve the same purpose as the separation of all powers from one another. The argument is tangible that the fact that the legislative and executive powers are tied together makes both to be directly responsible and trustworthy to strong party discipline, not to electorate, and this strong party line in the branches results in weak or no legislative scrutiny over the executive.<sup>68</sup>

Note however that all parliamentary systems do not equally succeed in applying the principle. Their potential compliance to the values depends mainly on the constitutional position given to the judiciary because in such systems one can only speak separation of powers as between the judiciary and the other two branches. Three scenarios can be examined in this regard. The first scenario is the application of the separation of powers in the Westminster model where legislative and executive powers are blended together and the judiciary is precluded from reviewing the validity of legislations.<sup>69</sup> This type of parliamentary is apparently exemplified in the UK where the government is elected from the legislature and the cabinet members sit in either the lower or upper houses of parliament.<sup>70</sup> The consequence is that the executive, if it secures the majority in the houses, can determine legislative outcomes with no or nominal opposition. The second type of parliamentary is where the parliament is not fully sovereign. In such systems, not only the parliament is subject to constitutional supremacy, but also is subject to review by ordinary court or similar institution for its acts.<sup>71</sup> The third type is semi-presidential, where executive power is divided between the president and the prime minister with strong presidential power especially when he secures majority seat in the parliament.

What is important from the above discussions is that, separation of powers need not always be understood to mean in the existence of clear distribution of functions between the three distinct departments which is better achievable in presidential systems. Rather it should be seen in light

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<sup>66</sup> Pauline German, “*Separation of Powers: Contrasting the British and Australian Experiences*” (2006) Electronic Law Journals, (as cited by Yemane Kassa).

<sup>67</sup> Ibid.

<sup>68</sup> Ibid.

<sup>69</sup> Yemane Kassa.

<sup>70</sup> Ibid.

<sup>71</sup> Ibid.

of an interrelated rules and principles that are designed to ensure that power is not concentrated in the hands of one branch and it is in this sense that the ideal can have sense.

## 2.4 The Concept of Finality/Ouster clauses

Privative or finality clauses are provisions in a statute which totally preclude or partially restrict the possibility of certain forms of administrative acts from review by courts. They are versions of law intentionally inserted in the parent act by the legislator in order to totally oust or partially restrict courts power to review administrative actions. Finality/ouster clauses can be inserted, for instance, by stating that “the decision of such agency/tribunal is final; or no appeal shall lie from decision of an agency/tribunal except for issue of law or etc. They vary the availability of certiorari so as to prevent the decision of a tribunal from being quashed. Typically, a privative clause provides that a decision should not be challenged, appealed against or called into question, or be subject to prohibition, mandamus or injunction in any court or on any account whatever.<sup>72</sup> They are relatively common in legislations, especially in the present world; legislators are busy enacting laws which have finality clauses.<sup>73</sup> By means of such clauses courts will regularly be denied the opportunity to examine the lawfulness of administrative decisions. Finality clauses not only limits courts power to review administrative decisions, but also restricts individuals constitutionally entrenched right to access to justice. Such clauses would appear to be unconstitutional in so far as it seeks to deprive Courts of its jurisdiction to require administrative agencies to act within the law.

## 2.5 The Case of Ethiopia

Ethiopia is a country established under a parliamentary system of government. Like many parliamentary systems, the government (chief executive) is elected by the legislature and is accountable to same.<sup>74</sup> However, it is hardly clear that the Ethiopian parliamentary system reflects the feature of the Westminster model for the sovereignty of the parliament is subject to constitutional supremacy.<sup>75</sup> Thus, what follows is that, how the separation of powers is employed by our constitution so that power will not be concentrated in a single branch of government? It is unusual to find a constitution which provides a specific clause dealing with separation of powers. What one can find in many constitutions in this regard is an inference from the structure of the constitutions. For instance, if one observes the USA and German, constitutions, they provide provisions as to what powers are given exclusively to which government branch.<sup>76</sup> They may state the power to make laws is given to the congress/parliament, executive power to the president/cabinet and the prime minister, and judicial power to courts.<sup>77</sup> All this tells us that each branch of government is vested with certain power over which no other branch will have direct and overruling influence. In a similar vein, the FDRE constitution enshrined the principle of

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<sup>72</sup> Simon Young, “Privative Clauses: Politics, Legality and Constitutional Dimension” (2004). (Herein after referred as Simon Young)

<sup>73</sup> Ibid.

<sup>74</sup> See Article 56 of the Constitution of Federal Democratic Republic of Ethiopia, proclamation No.1/1995 (herein after referred as the FDRE Constitution).

<sup>75</sup> Ibid, Article 9(1).

<sup>76</sup> Yemane Kassa.

<sup>77</sup> Ibid.

separation of powers by stipulating that legislative, executive, and judicial powers of the federal government are vested on the House of Peoples Representatives (HPR), the prime minister and the council of ministers, and the federal courts respectively.<sup>78</sup> Looking at its structure therefore it is possible to say that the FDRE constitution recognizes the separation of powers principle. The fact that the Prime Minister and its cabinet sit in the parliament and its accountability (together with its Cabinet) to same inevitably diminishes the place of separation of powers between the legislature and the executive (for it runs against personal separation of powers).<sup>79</sup> This is, in fact, a feature in almost all parliamentary systems.

However, in Ethiopia, the arrangement is different from other parliamentary system. This is because of the fact that, the president has no right to say on the selection of the Prime Minister by the HPR nor does he/she have a role in the legislations passed by the HPR.<sup>80</sup> Moreover, the absence of second legislative chamber which is elected in separate procedure and vested with the right to participate in the legislative process opens a clear and simple way for the legislature and the executive to conspire along party line and pass a law with no or less obstacles. Furthermore, the power of the Prime Minister to dissolve the parliament and the analogous power of the parliament to call and question the prime minister and the executive in general and take any measure it deems necessary may end to be intrusive of the doctrine.

Deeply looking the above facts, one can say that true separation of powers in Ethiopia like in many parliamentary systems exists as between the executive and the judiciary. Two reasons can be forwarded to justify the statement. First, the fact the HPR is supreme provides less institutional defense for the other branches to counteract the will of the former. Second, the fusion of membership in the legislative and executive branches shows that it is naive to imagine the existence of real separation between the branches. One may say that there is separation of powers between the legislature and the judiciary for the reason that there is no fusion of membership and the fact the judiciary is not accountable to the legislature. However, it is important to know that absence of fusion of membership and accountability of one to another is insufficient for the doctrine. The doctrine, as it is repeatedly said, also requires that each branch must be give the “necessary constitutional means and personal motives, to resist encroachments of the others” and not to rely on the other branch.<sup>81</sup> In our case, the judiciary is, with in the constitutional limit, subject to the will of the legislature and in this connection the judiciary cannot defend its institutional responsibility by itself against encroachment by the legislature.

However, it is worthy to remind the fact that regarding those constitutionally mandated powers it seems sound to say that neither of the branches in general and the parliament in particular can encroach up on the power of the other branches for there is no parliamentary supremacy over the constitution in Ethiopia. Similarly, there is no any constitutional stipulation which indicates the

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<sup>78</sup> See Article 55(1), 72(1), 79(1) of the FDRE Constitution respectively.

<sup>79</sup> Ibid, Article 73(1), 72(2) and 76(3).

<sup>80</sup> Ibid, Article 57.

<sup>81</sup> James Madison, p 348-349.

supremacy of the executive over the judiciary nor does it provide vice versa. In the absence of clear constitutional stipulation to such effect, one cannot curiously say that the executive and the judiciary are constitutionally put at equal footing under the FDRE constitution. Yet, broad delegation strengthens the fusion of legislative and executive power since it contravenes functional separation that ought to exist between the two branches. To sum up, in Ethiopia, it is obvious that disputes related to separation of powers are more likely to appear between the executive and the judiciary.<sup>82</sup> How the institutional responsibility of the other branches, particularly, the judiciary could be defended against an unwarranted encroachment by the legislature may therefore be an important issue to be raised here.

## Conclusion

The rule of law is a political ideal which says that every action of government should be based on law and every individual aggrieved by action of a government have to have an avenue to claim a remedy in an impartial and independent institution. The ideal is known since the time of ancient Greece. The rule of law has also got a great deal of concern during the ancient Roman civilization. The ideal has also got acceptance in the modern days. The relevance of the rule of law is approved by every government even those which are considered to be totalitarian. Despite the rule of law is unanimously conceived as an essential precondition for the protection of human rights and realization of democratic governance, its scope and contents has continued to be a source of debate. The difference among scholars regarding the rule of law can generally be seen from two aspects; the formal conception and the substantive conception. In its formal conception, the rule of law requires that every action of government must be done in accordance with a law which is made by appropriate organ, prospective, general, non-retroactive and equally applicable.

The formal conception of the rule of law has been criticized for many reasons. The most important is however that the ideal in its formal sense reinforces a mere principle of legality and cannot control the establishment of tyrant government. The rule of law which fulfills the requirements in the formal conception may not serve to constrain a government from exercising an arbitrary power. Moreover, the ideal in its formal sense does not prevent laws from being instruments of oppression by governments and even totalitarian governments may comply with it.

The rule of law in its substantive version on the other hand requires that, in addition to the elements in the formal conception, laws must also be substantively just. It questions whether a law is good or bad. Accordingly, law is supreme and must be respected only when its content is just. A problem with the substantive conception of the rule of law is that, it is difficult to decide which laws are said to be just and which are not.

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<sup>82</sup> Yemane Kassa

The rule of law as an ideal has a clear connection with the separation of powers and the role of judiciary and is determinant factor on the efficiency of both. The rule of law, be it in its formal or substantive conception, requires the existence of an independent and strong judiciary that is empowered to decide on the constitutionality or otherwise of decisions of a government and give remedy to aggrieved parties. Moreover, the judiciary, if not the only, is one of the main constraints on government power that constitutions provided. This is particularly true that the judiciary by using its review power protects the abuse of rights by the majoritarian legislature. It also helps the rule of law by reviewing decision of administrative agencies which are alleged to be contrary to a supreme law or an established general principle of law.

Despite the judiciary can ensure the rule of law for the above reason, its legitimacy to review the constitutionality of legislations passed through democratic process is challenged. The argument is that since judges are not elected by the people and not accountable to the people, they lack the democratic legitimacy to invalidate laws passed by the legislature which have better democratic legitimacy. The argument is however challenged, at least, for two reasons. First, the judiciary is established to serve a counter majoritarian role by a higher law, the constitution, to serve the purpose of constraining majority tyranny. Second, the judiciary is not obstinately counter-majoritarian, especially since judicial appointments are never completely insulated from political control and influence.

Moreover, the approval of budget of the judiciary by the legislature and the due process of law are mechanisms that can put the judiciary on accountability. The rule of law has also a direct relation with the principle of separation of powers and both owe a role to each other. The rule of law by keeping the judiciary independent ensures the protection of individual rights enshrined in bill of rights. This is possible only where the doctrine of separation of powers is firmly recognized. However, the doctrine of separation of powers is not strictly adhered in parliamentary systems. This is because the separation of powers in strict sense requires the existence of horizontally equal government branches in which neither will not have substantial influence over the other branch. Moreover, the legislative and executive powers are substantially fused in such systems both in personnel and functionally.

Therefore, in such systems it is uncritical to think that the ordinary courts will have the power to review the constitutionality or otherwise of a law that is issued by the legislature. However, there are some countries, such as Germany, where a separate institution, the constitutional court, is established to constrain the strong parliament through reviewing the constitutionality of legislations. In Ethiopia, the constitution incorporated the principle of separation of powers as it can be understood from its structure. Yet, the parliament is declared to be the highest organ of the government which assures its supremacy over the other branches, if not the constitution. In general, the separation of powers in parliament systems, including Ethiopia, can genuinely exist only between the judiciary and the executive organs of government for the supremacy of the legislature in such systems will make possible for the legislature to put substantial influence over the other branches.

## Chapter Three

### Judicial Power and Constitutional Limits on Judicial Review

#### 3.1. Introduction

Finding universal definition for judicial review is a difficult task to accomplish. This is mainly because despite the fact that it is generally practiced by many countries, this concept has understood differently in different legal systems. This being the case, jurists tried to define the term as the power exerted by the courts of a country to examine the actions of the legislative, executive and administrative arms of the government and to ensure that such actions conform to the provisions of the constitution.<sup>83</sup> From this definition, it is easy to understand that judicial review is a mechanism to oversee the decisions of government organs and make sure their decisions are made within the legal boundary provided thereby.

Even though the judiciary is considered as one of important organ in government power structure, the scope and legitimacy of its power is usually argumentative. In principle, judicial power, the power to say what the law is, is vested on courts.<sup>84</sup> However, the extent and scope of such power of courts is not the same across the world legal system. Instead, judicial power is dependent on the type of specific legal system and accordingly, it may be broad or narrow. Judicial power also varies from country to country on the ground where the power emanates from. In many countries, judicial power is expressly vested under a constitution and courts are not allowed to exercise lesser or greater power than what is provided by the constitution itself.

In the United States, for instance, the constitution is silent as to whether the Supreme Court and other federal courts are authorized to engage in judicial review of laws and acts of the executive. The power of the federal courts to review the constitutionality of congressional statutes and acts of government is firmly established through strong judicial activism by the activist judge, Chief Justice Marshal of the US Supreme Court in the case *Marbury vs. Madison*.<sup>85</sup>

In France, on the other hand, courts are constrained from reviewing the constitutionality of statutes issued by the parliament. The power to check the constitutionality of statutes is vested to the Constitutional Council and yet, this power of the Council is limited in time that it can test the constitutionality of proposed laws before they are promulgated.<sup>86</sup> In Germany, the power to engage in constitutional adjudication is vested on the constitutional Court.<sup>87</sup> In Ethiopia however, the power of courts does not seem to be clear. In fact, the constitution clearly stipulates that judicial power is vested on courts.<sup>88</sup> The same document provides that the power to interpret and decide all constitutional disputes resides on the House of Federation (here after referred as the

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<sup>83</sup> The New Encyclopedia Britannica (15th ed., 1986)

<sup>84</sup> Erwin Chemerinsky, "Constitutional Law" (2<sup>nd</sup> ed., 2005) (Herein after referred as Erwin Chemerinsky)

<sup>85</sup> Walter F. Murphy, "Congress and the Court: A Case Study in the American Political Process" (2<sup>nd</sup> ed., 1964). As cited by Yemane Kassa.

<sup>86</sup> Martin M. Shapiro, "Judicial Review in France" (1990), Journal of Law and Politics

<sup>87</sup> See article 93 of the Basic Law.

<sup>88</sup> See Article 79 of the FDRE Constitution.

HoF).<sup>89</sup> Here, disagreement arises as to whether ordinary courts are completely excluded from interpreting the constitution. The fact that there is no constitutional stipulation that provides clear demarcation on the power of the HoF vis-à-vis the role of ordinary courts in the enforcement of the various constitutional provisions created different opinions among many authors who worked on the respective role of courts and the HoF.

Moreover, the enactment of laws in the recent days which partially limit or totally removed court jurisdiction to review decisions of administrative agencies is argued as a threat to judicial power. The laws may be contested both on the ground of legitimacy of their compatibility with the supreme law (the constitution) and on the allegation that they reinforce the conferral of unconstrained powers that establishes factual supremacy of both the legislative and executive organs of government in a way incompatible to the supremacy of the constitution. Not only this, the logical soundness of decisions of relevant government institutions, particularly, that of the CCI and the Federal Supreme Court Cassation Bench in relation to the jurisdiction stripping laws from the constitutional perspective also raises a great deal of debate on the area. Considering the relevance of the CCI in ensuring the supremacy of the constitution by declining any law or government action that contravenes the constitution, making reference to some of its decisions in similar area is found to be relevant. Similarly, the decision of the Cassation Bench on the same area is found to be a contested and the writer believes that recalling to the decisions is necessary owing to the fact that the Bench plays a paramount role in determining jurisdiction of ordinary courts. To this end, analysis of the laws that stripped court jurisdiction and appraisal of cases decided by concerned bodies in the area are widely employed in this chapter. Based on this, an attempt to establish the pattern of the jurisdiction stripping laws and decided cases on the same subject matter together with the possible implication they connote on the rule of law, judicial power, and protection of fundamental rights is in order.

### **3.2. The Constitutional Mandate of the Judiciary in Ethiopia**

Judicial review refers to the mechanisms by which the courts control the exercise of governmental power.<sup>90</sup> This being the case, judicial power is among the controversial powers of the three departments of government. With regards abuse of discretion, it includes exercising statutory power in a manner contrary to the aim of the statute, acting for improper purposes, acting in error of the law guiding the decision-makers powers, using discretion in a rigid manner and exercising statutory power in an unreasonable or irrational manner. In short, the aim of the court in judicial review is to ensure that the person or body with adjudicatory powers act in accordance with law, reasonably and according to natural justice and fairness.<sup>91</sup> Judicial review can be also understood as a method designed to check whether the decision of the administrative agencies doesn't trespass the limit provided by law.

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<sup>89</sup> Ibid Article 62.

<sup>90</sup> Hilaire Barnett, p-179

<sup>91</sup> Ibid.

In principle, it could be said that constitutional interpretation is vested up on the ordinary judiciary. This principle does not however always hold true in all countries and depending on the type of legal system, the institution involved in constitutional adjudication varies. Under the FDRE constitution, this power is given to the HoF even though the scope of the power is still a contested area.<sup>92</sup>

Across the world different institutions are vested with the power to interpret the constitution like the US Supreme Court in the United States, the Constitutional Court in Germany and South Africa, and the Constitutionel Conseil in France. It is vested to a political organ like in the case of Ethiopia (thus, HoF). The nature, legitimacy and scope of the power of these institutions vary as well. It is argued that there must be some restrictions up on the power of the courts. However, it is also argued that these limitations must have constitutional base, especially in the parliamentary system of government, like Ethiopia, in which the parliament is recognized to be the highest of all organs of the government.

This is because judicial power in Ethiopia is challenged not only by the constitutionally posed limits but also by parliamentary legislations enacted at different times. Today the parliament is so busy enacting ousting legislations. Currently, there are legislations promulgated in the last few years that have the effect of partially limiting or totally removing, courts from their [inherent] jurisdictions. Thus, under this part, it is intended to establish judicial power in Ethiopia by looking it against two limitations imposed on it; the constitutional and legislative limits as discussed hereunder.

### **3.2.1. The Constitution and Scope of Judicial Review**

In Ethiopia, though the legislature (HPR) is the highest organ of government, its supremacy is not absolute; rather it is subject to the supremacy of the Constitution.<sup>93</sup> Constitutionally speaking, therefore, the supremacy of the HPR is subject to a constitutional limit; thus, cannot make laws which have the effect of encroaching on the constitutional mandate of the other branches. In this regard, one may not easily find an express constitutional provision that allows the Ethiopian legislature to limit the power of courts recognized under the Constitution.

Practically, however, there are legislations which totally remove or partially limit court's jurisdiction and it seems that this trend creates a threat to the judiciary. This paper argues that the trend in Ethiopia seems to prove that there is an increasing practice of promulgating laws containing court stripping clauses from reviewing decisions of government agencies. This is because in a country where constitutional supremacy is firmly established, it is hardly sound to think that the supreme legislature which is subject to constitutional limit will have the power to grant or deny the constitutionally mandated powers of the other branches.

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<sup>92</sup> See Article 62 of the FDRE Constitution.

<sup>93</sup> See Article 9(1) of the FDRE Constitution.

The FDRE Constitution provides that judicial powers, both at federal and state level, are vested on the courts.<sup>94</sup> This constitutional power of courts could have been acceptably limited by the same document or other laws which are clearly authorized by same, for instance the power to entertain constitutional dispute is given to HoF.<sup>95</sup>

It is common that the power of ordinary courts to entertain some category of cases and controversies is constrained by their national constitutions. Constitutions at times have provided that particular constitutional or legislative issues cannot be reviewed by the courts. For instance, the US constitution limits the jurisdiction of courts only to cases and controversies thereby constrain them from giving advisory opinion and hear hypothetical cases; and in the German constitution the constitutional court will not review the constitutionality of a matter which the Basic Law has given to the discretion of the legislature.<sup>96</sup>

It is true that there is constitutional limitation imposed on the judiciary that the power to interpret the constitution is vested to the HoF/ the Council of Constitutional Inquiry.<sup>97</sup> And this raises the argument that courts in Ethiopia cannot interpret the constitution. Two important issues may however follow from this constitutional provision. First, the determination of what amounts to constitutional interpretation is far from clarity yet its similarity or difference with constitutional dispute is part of the issue.<sup>98</sup> Second, the scope of the power of the HoF/CCI vis-à-vis the role of courts in constitutional interpretation seems to be unsettled issue. It is argued that determining the interpretive power of courts in Ethiopia necessarily requires the determination of the scope of the power of the HoF/CCI for the power of courts is basically affected on the perceived and real powers of the HoF/CCI.

There is different understanding of the above framed two issues by different writers. To begin with the first issue, there is an understanding that the two terms are employed in the constitution differently. Accordingly, it is argued that constitutional interpretation refers to the review of constitutionality of laws made by state and federal legislators whereas constitutional disputes involves cases of concrete/real dispute between parties involving constitutional issue.<sup>99</sup> Others still argue that constitutional interpretation is more than reviewing of the constitutionality of laws and includes the determination of the scope, meaning and content of a constitutional provision in question.<sup>100</sup> According to this view, dealing with constitutional interpretation requires the determination of the meaning of constitutional dispute; thus, constitutional dispute is both the task of determining the scope of specific constitutional provision and ascertainment of the constitutionality of laws made by state and federal law makers.<sup>101</sup>

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<sup>94</sup> Ibid, Article 79(1).

<sup>95</sup> Ibid, Article 62(1)

<sup>96</sup> Chester J. Antieau, " *Adjudicating Constitutional Issues*" (1985) Oceania Publications

<sup>97</sup> See the FDRE Constitution, Article 62(1), 83 and 84.

<sup>98</sup> Assefa Fiseha, " *Constitutional Adjudication in Ethiopia: Exploring the Experience of the House of Federation*" (2007) Mizan Law Review, as cited by Yemane Kassa.(herein after referred as Assefa Fiseha).

<sup>99</sup> Ibid.

<sup>100</sup> Yonatan Tesfaye, " *Whose Power is it Any Ways: the Courts and Constitutional Interpretation in Ethiopia*" (2008) Journal of Ethiopian Laws. As cited by Yemane Kassa. (Herein after referred as Yonatan Tesfaye)

<sup>101</sup> Ibid.

Considering the fact that the HoF is vested to see only abstract cases of constitutional issues, it seems plausible to understand the two terms as inseparable. It is true that constitutional issues may be raised from real/factual cases in a court of law in the same manner as they may be lodged by government organs; however, such issues can only be referred to the HoF/CCI in their abstract sense.<sup>102</sup> Another point which may strengthen this way of understanding is that it is provided in the enabling legislation (proclamation No.251/2001) of the power and responsibility of the HoF is required to interpret the constitution and the term resolving constitutional disputes is not employed.

The other issue is that whether courts are completely divested of the power to interpret the constitution. There are different opinions among authors regarding the scope of the power of the HoF vis-à-vis courts in Ethiopia. Accordingly, we can have three views as to the power of the HoF and of courts in interpreting the constitution. The first category of understanding provides that courts are wiped out from the power to review the constitutionality of laws made by state and federal legislature and determination of the scope, meaning and content of provisions of the constitution.<sup>103</sup> According to this view, courts have only the role of enforcing provisions of the constitution and they can do so to the extent it does not involve interpretation of the constitution. The argument is made based on the presumption that there are some provisions of the constitution which are explicit and clear which do not require interpretation and it is in such cases that courts are required to apply the provisions of the constitution.<sup>104</sup>

The argument is however open to challenge at least for two reasons. First, based on the indeterminacy theory, constitutional texts are general, vague, and abstract that may require interpretation and construction of a given provision based on some values that are not explicitly provide in the text of the constitution.<sup>105</sup> To use Assefa's expression in this regard, to think that it is possible to apply the constitution without interpreting it is more of "a myth than a reality".<sup>106</sup> Second, direct application of constitutional provisions by courts may be challenged based on the nature of judicial power. Judicial power in strict sense is determining what the law says, not application of the law without looking at what the law is. If judges are considered as persons through which the law is to be applied, their function is an administrative proper, not judicial.<sup>107</sup>

The second category of understanding regarding the power of courts vis-à-vis the HoF, which is mainly advocated by Assefa, provides that courts in Ethiopia are excluded from interpreting the constitution only when the un/constitutionality of laws by state and federal legislative bodies is questioned; and in all other cases, it is not the intention of the constitution to preclude courts

<sup>102</sup> Council of Constitutional Inquiry Proclamation, Proclamation No. 250/2001 Federal Negarit Gazeta, 7<sup>th</sup> year No.40 (July 2001), Arts.21(3), 22(4), (herein after referred as CCI Proclamation)

<sup>103</sup> This view is mainly reflected by Yonatan Tesfaye.

<sup>104</sup> Yonatan Tesfaye.

<sup>105</sup> Luc B. Tremblay, "General Legitimacy of Judicial Review and the Fundamental Basis of Constitutional Law" (2003) Oxford Journal of Legal Studies, (herein after referred as Luc B. Tremblay).

<sup>106</sup> Assefa Fiseha.

<sup>107</sup> Vincent M. Barnett, "Constitutional Interpretation and Judicial Self-restraint" (1940) Michigan Law Review. (Herein after referred as Vincent M. Barnett)

from interpreting the constitution.<sup>108</sup> Accordingly, Assefa asserted that the judiciary is duty bound to “respect and enforce” the provisions of chapter three of the constitution and to ensure the observance and enforcement of the constitution is achievable if courts have certain degree of interpretive power in the constitution.<sup>109</sup> Moreover, he forwarded strong argument that owing to parliamentary supremacy in Ethiopia, yet subject to constitutional supremacy, it could be soundly argued that court’s power is foreclosed only if it involves the determination of the un/constitutionality of laws enacted by federal and state legislatures as it is clearly provided under Article 84(2) of the constitution.

The third understanding of the power of the HoF/CCI and of the courts in interpreting the constitution is reflected in the article published by Getachew.<sup>110</sup> Getachew’s finding on the power of courts in interpreting the constitution is made by relying mainly on the intention of the makers of the constitution as reflected in the Minute of the Constitutional Assembly after reviewing existing literatures in the area. Accordingly, the reading of the article revealed that he came up with three new findings as to the power of courts regarding to constitutional interpretation. First, contrary to what is argued by Yonatan, he concluded that it is up to the power of courts to determine the meaning, scope and content of a constitutional provision in resolving factual disputes before them so long as they are not faced with “constitutional dispute”.<sup>111</sup> Second, courts cannot pass a decision up on issues of constitutionality or settling constitutional disputes irrespective of the type of cases and regardless of the fact that the legislations are apparently unconstitutional.<sup>112</sup> Third, different from Assefa, all constitutional disputes-whether involving federal or state proclamation, regulation, directive, or decision of federal or state organ or official- are precluded from the jurisdiction of courts rather within the interpretation power of the HoF/CCI.<sup>113</sup>

Coming back to the main issue, a constitutional issue arises, for one thing, when citizens file a case to courts to ensure their rights and if they believe that the court decides it in contradiction with the constitution. Regarding this, it is asserted by the Assembly that there is a difference between issues of constitutional interpretation involving individual rights and those involving group rights. Here one may tempt to argue that the statements of the Assembly reflect the fact that the makers did not intend to oust courts totally from interpreting the constitution.<sup>114</sup> Instead, it may be inferred from this that citizens may apply to courts that their rights are affected by the act or decision of government body contrary to the constitution.<sup>115</sup> Beside this, courts have the power to interpret directly a constitutional provision to determine the scope, meaning and content

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<sup>108</sup> Assefa Fiseha.

<sup>109</sup> Ibid.

<sup>110</sup> Getachew Assefa, “All about Words: Discovering the Intention of the Makers of the Ethiopian Constitution on the Scope and Meaning of Constitutional Interpretation” (2010) Journal of Ethiopian Laws. (As cited by Yemane Kassa) (Herein after referred as Getachew Assefa)

<sup>111</sup> Getachew Assefa.

<sup>112</sup> Ibid.

<sup>113</sup> Ibid.

<sup>114</sup> Yemane Kassa.

<sup>115</sup> Ibid.

of that constitutional provision so long as they are not engaged in the determination of the constitutionality laws.<sup>116</sup>

The stand of the writer is therefore, regarding the issue of whether or not courts have the power to interpret the constitution; yes they can if it is to determine the scope, content and meaning of a specific constitutional provision absent of deciding the un/constitutionality of laws. It is apparent that the court necessarily involves in interpreting a law at issue in line with the constitution because without doing this, it is impossible for the court to decide whether a given case before it requires constitutional interpretation. Therefore what is prohibited for the courts is to decide a law unconstitutional.

One can still add a point that solidifies the argument in the preceding paragraph. The Judiciary is duty bound to respect and enforce chapter three of the constitution.<sup>117</sup> To enforce chapter three of the constitution necessarily requires interpreting the constitution. However, such interpretive power of courts concerning chapter three of the constitution does not include the determination of the constitutionality or otherwise of laws that are alleged to violate the mentioned chapter of the constitution. In this regard, the writer concurs with Yonatan as to the meaning of “constitutional interpretation” that interpretation of the constitution constitutes two components; reviewing the constitutionality of laws and determining the scope, meaning and content of a constitutional provision.<sup>118</sup> Thus, courts are required to discharge their obligation of enforcing chapter three of the constitution by interpreting the constitution with a view of determining the scope, content and meaning of a constitutional provision. They cannot however involve in deciding the unconstitutionality of a law for such power is exclusively vested to the HoF/CCI.

Therefore, we can conclude that Courts in Ethiopia can interpret the constitution if they believe that a contested law before them is not contrary to the constitution. However, if the court believes that a law before it is unconstitutional, it shall refer it to the HoF/CCI no matter whether the law is proclamation, regulation or directives.

### **3.2.2. Legislative Limits on Judicial Power**

In the foregoing discussions, it is tried to establish the role of courts in constitutional interpretation and the constitutional constraints imposed up on them. Accordingly, courts in Ethiopia are vested with the power to decide only justiciable matters that do not deal on the determination of un/constitutionality of any type of laws. Under this part, the limits that may be put on the power of courts by the legislature (HPR) are to be addressed.

In the United States, ouster clauses challenge judicial autonomy and the courts' position as a coequal branch of government in a constitutional order that has rejected legislative supremacy. In such a system, we might expect that the courts would never allow Congress to oust their

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<sup>116</sup> Ibid.

<sup>117</sup> See Article 13(1) of the FDRE Constitution.

<sup>118</sup> See Yonatan Tesfaye, p-134.

jurisdiction under any circumstances.<sup>119</sup> In countries where parliamentary supremacy is firmly established, the parliament may provide statutory limit on judicial power by ousting some of its powers. In such systems, there is no legal ground for courts to challenge the court stripping legislations by the parliament. However, in Ethiopia, though the legislature (HPR) is constitutionally established to be the highest organ of government,<sup>120</sup> its supremacy is not absolute rather it is subject to the supremacy of the constitution.<sup>121</sup> Constitutionally speaking, therefore, the supremacy of the HPR is subject to constitutional limit and cannot by any means exceed from its power stipulated under the constitution; thus, cannot make laws which have the effect of encroaching up on the constitutional mandate of the other branches, the judiciary in our case.

A judicial power, both at federal and state level, is vested in the courts.<sup>122</sup> This constitutional power of courts can be limited by the same document or other laws which are clearly authorized by same. Coming back to legislative limits on the power of courts, one cannot find an exact provision that allows the legislature to restrict the power of courts recognized under the constitution. However, there is a stipulation in the constitution which provides that judicial power may be exercised by institutions other than ordinary courts. The provision provides that “special or ad hoc courts which take judicial power away from regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures shall not be established.”<sup>123</sup> The acontrario reading of the provision reveals that judicial power may be taken away from regular courts and given to special or ad hoc courts provided that they follow legally prescribed procedures. These institutions include, within agency tribunals, appeal commissions and similar organs which may be established by the HPR.

From this, it is clear that apart from the clear limits by constitutional provisions as discussed above, the limits by the HPR up on judicial power by establishing institutions that could take away judicial power according to the constitution is legally and practically justifiable. The prevailing reality in Ethiopia however shows different scenarios of giving judicial power to other institutions in a way which contravenes seems the constitution. Two important issues may be framed in this regard. First, can the HPR establish institutions, special or ad hoc courts which exercise judicial functions but do not follow legally prescribed procedures? Second, is it warranted by the constitution that the HPR establishes institutions or special courts which exercise judicial function following legally prescribed procedure but their decision is not reviewable by regular courts? These issues are dealt below.

<sup>119</sup> Douglas E. Edlin, “A Constitutional Right to Judicial Review: Access to Courts and Ouster Clauses in England and the United States” (2009) the American Journal of Comparative Law.

<sup>120</sup> See Article 50(3) of the FDRE Constitution.

<sup>121</sup> Ibid, Article 9(1).

<sup>122</sup> Ibid, Article 79(1).

<sup>123</sup> Ibid, Article 78(4).

### 3.3. The Court Stripping Legislations

As it is discussed above, whether the legislature can totally remove or partially limit court's jurisdiction varies from country to country and depends on the type of system established in the country. In countries where the parliament is sovereign, jurisdiction stripping legislations are less controversial. In countries where the parliament is supreme subject to the supremacy of a constitution, legislations that oust judicial power are relatively contestable. Whereas, in countries that establish government organs with equal constitutional status, the issue is highly contested. For instance, in the United States constitutional history the congress has proposed bills that remove or limit the jurisdiction of Federal Supreme Court as well as state courts in many occasions and the measure continues to be area of controversy until recently.<sup>124</sup> In Ethiopia too, there are many legislations which remove or partially limit court's jurisdiction and it seems that stripping court jurisdiction is the new threat to the judiciary these days. The trend in Ethiopia seems to prove that there is an increasing practice of promulgating laws containing court stripping clauses that establish tribunals within administrative agencies which take away judicial power.

The Urban Lands Lease Holding proclamation is among the laws that foreclose judicial power which provides that the decision of the appeal Commission delivered both on points of law and fact shall be final, except on issues of compensation.<sup>125</sup> The law prohibits citizen's right to challenge the legality of measures taken by the concerned government authority, for instance, the legality of a lease issued by the agency, and excludes court's power to entertain the issue. In the case *Southern Region Hawassa City Municipality vs. Hawassa Debre Genet St. Gabriel Church*, the Federal Supreme Court Cassation Bench decided that courts do not have the jurisdiction to see claims challenging the legality of lease issued by the Lease Board.<sup>126</sup>

Similarly, the proclamation for expropriation of public holdings provides that aggrieved person by an expropriation decision could appeal both to the tribunal established in the agency and the High court, only on question of compensation.<sup>127</sup> Questions concerning factual dispute and the legality of the expropriation could not be heard by any institution including the Tribunal (to be) established under the agency.

Another law that precludes court jurisdiction is the Social Security Agency Re-establishment Proclamation that provides the decision of the Social Security Appeal Tribunal is final and conclusive.<sup>128</sup> This is an absolute denial of jurisdiction of ordinary courts on issues (law and fact) of pension and related benefits. The federal Supreme Court Cassation Bench in the case of *Maheberawi Wastina Balesiltan vs. Ato Berhanu Hiruy and Kebede G/Mariam* has confirmed

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<sup>124</sup> Max Baucus and Kenneth R. Kay, "The Court Stripping Bills: Its Impact on the Constitution, the Courts and Congress" (1981-1982) *Villanova Law Review*

<sup>125</sup> See Art. 29(3), of Urban Lands Lease Holding Proclamation, Proclamation No. 721, Federal Negarit Gazeta Year 2011, No.4

<sup>126</sup> Decision of the Cassation Bench, file no.46220, decided on January 27, 2010.

<sup>127</sup> Expropriation of Land Holdings for Public Purposes and Payment of Compensation Proclamation, Proclamation No.455/2005, Federal Negarit Gazeta, 11<sup>th</sup> Year No.43, 2005 Art 11

<sup>128</sup> The Social Security Re-establishment Proclamation, Proclamation No.495/2006, Federal Negarit Gazeta, 12<sup>th</sup> year No. 31 2006, Art 11(5)

the power of the commission to render final decision and ordered lower courts not to review cases that come from the social security tribunal.<sup>129</sup> The Urban Lands Lease Holding Proclamation<sup>130</sup> is one such law and since it is the concern of the paper, it will be discussed under another section below.

The above discussed laws are not exhaustive in that there are other legislations with similar effect on the jurisdiction of the judiciary and is not relevant to enlist them here. However, the discussion is sufficient at least to address some issues and establish the general trend of laws promulgated and decisions of appropriate government institutions so far vis-à-vis the interpretive power of the judiciary as discussed in the subsequent sections.

### **3.4. Legal Status of Laws Having Finality Clauses in Ethiopia**

Judicial power in its general context is the power to say what the law is and this power is, in principle, vested on ordinary courts.<sup>131</sup> It cannot be argued that judicial power is legitimate at all times and the fact that the power to determine what the law is given to unelected judges has been continued to be an area of contention and this calls for the proposition that the power should be subject to some constraints.<sup>132</sup> The extent of the constraints may be either legislative limits or constitutional limits as discussed above and this varies from country to country.

Before analyzing the constitutional standing of the laws that limit or remove court jurisdiction in Ethiopia, it is worthy first to see once again the legitimate constitutional constraints up on judicial power very briefly. The first constraint is the judiciary is excluded from interpreting the constitution that involves the constitutionality of a law even though the scope of such constraint is still debatable. Another constraint is justiciability. The judiciary in Ethiopia is vested with the power to see only justiciable matters brought before it though which matters are justiciable and which are not, and who decides this issue is unsettled.<sup>133</sup> Finally, judicial power may be constitutionally taken away through legislations when it is vested up on other institutions other than ordinary courts provided that they are required to follow legally prescribed procedures.<sup>134</sup> These are the most important constitutional provision regarding judicial power in Ethiopia.

Having said this about the constitutionally provided constraints of judicial power in Ethiopia, now it is on the right time to analyze the stand of the laws that stripped judicial function in light of the constitutional limits on judicial power and other relevant principles of law as provided by our constitution. The first category of ouster laws can be seen from the angle of Art.78 (4) of the constitution. According to this provision, institutions or other bodies other than ordinary courts that do not follow legally prescribed procedures cannot be established to exercise judicial functions. The constitution is clear in this respect and establishing an organ or institution vested with judicial function but that does not follow legally prescribed procedures is unconstitutional.

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<sup>129</sup> Decision of the Federal Supreme Court Cassation Bench, File No.18342, December, 2005.

<sup>130</sup> Urban Lands Lease Holding Proclamation, Proclamation No. 721/2011

<sup>131</sup> Erwin Chemerinsky.

<sup>132</sup> Ibid.

<sup>133</sup> See Art.37 (1) of the FDRE Constitution.

<sup>134</sup> Ibid, Art. 78(4)

The constitution, when it requires the need to follow legally prescribed procedures while exercising judicial function by organs other than ordinary courts, it should be construed that it is within the spirit of our constitution that due process of law should be ensured.

Thus, what could be raised here is a couple of issues; a) whether or not the institutions or bodies established by the various laws to exercise judicial functions are constitutionally legitimate, b) whether or not making the decision of these institutions to be final is in line with the constitution.

It is repeatedly said that institutions that exercise judicial functions and follow legally prescribed procedures can be established. Based on this, some tribunals are established in administrative agencies, such as the civil service Administrative Tribunal, the Tax Appeal Commission, and the Social Security Appeal Tribunal.<sup>135</sup> The important point that should be addressed in relation to these tribunals is whether or not they follow legally prescribed procedures so that they could be considered as institutions established in a way compatible with the constitution. The determinant factor under the constitution regarding the legality of the tribunals exercising judicial power is the fact that they follow legally prescribed procedures. When seen in light of this, the above mentioned tribunals could be said that they are constitutionally legitimate because they follow legally prescribed procedures as provided in the constitution.

However, opposite to this, there are institutions that are established to exercise judicial function while there is no legally prescribed procedure they may follow. The appeal commission established by the Urban Lands Lease Holding Proclamation is not required to follow any procedure; instead, it is empowered that it shall not be governed by the ordinary Civil Procedure Code while conducting its functions.<sup>136</sup> Furthermore, the Agency for Government Houses, through the Director General, is entitled to exercise a function that would be appropriate to be vested to the courts. Accordingly, it is empowered to evict tenants of Government Houses for an alleged breach of contract and for presumed illegality of the occupation by the tenant without the need to follow a clear procedure or court permission.<sup>137</sup> These institutions, no matter whether their decision is final or not, do not have constitutional basis since there is no legally prescribed procedure they are required to follow while discharging their obligations.

In this connection it is important to see how the Cassation Bench addresses the issue of who can exercise judicial functions other than ordinary courts. In many cases, the Bench confirms the legality of discharging judicial functions by these and similar institutions by citing the civil procedure code of Ethiopia.<sup>138</sup> In the case *Welday Zeru et al Vs. the Ethiopian Revenues and Customs Authority*, the Cassation Bench in its ruling making an express reference to Art.4 of the

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<sup>135</sup> See the Federal Civil Servants Proclamation No.515/2007, Art.74, Income Tax Proclamation No.286/2002 Art.113, Social Security Agency Re-establishment Proclamation No.495/2006, and Art.11 respectively.

<sup>136</sup> See the Re-enactment of Urban Land Lease Holding Proclamation, Proclamation No.272/2002, Federal Negarit Gazeta 8th year No.19, 2002.

<sup>137</sup> See Agency for Government Houses Establishment Proclamation, proclamation No.555/2007, Federal Negarit Gazeta 14th year No.2 2007..

<sup>138</sup> The civil procedure code of the empire of Ethiopia, 1965, Art.4 which provides that “Without prejudice to the provisions of the following Articles, the courts shall have jurisdiction to try all civil suits other than those of which their cognizance is expressly or impliedly barred.”

civil procedure code reasoned out that courts cannot adjudicate and decide on cases that are prohibited by *other laws* not to be brought before them.<sup>139</sup> Constitutionally speaking, the reasoning is less convincing for at least two reasons. For one thing, judicial power can be taken away and given to other institutions only if such institutions are required to follow legally prescribed procedures, not merely because some claims are prohibited by other laws not to be adjudicated by courts. Judicial power is a constitutionally vested power and to argue that this power may not be exercised by courts if other laws (proclamation, regulation, and directives) provide so is unintended by the constitution. The Bench's understanding in this respect reinforces assisting the other two branches to continue issuing laws that ousts of judicial power and let them put the judiciary to be their subordinate. An important question is what if all conceivable judicial powers are foreclosed by laws?

For another thing, relying on a law that is issued by a sovereign emperor where there was no constitutional supremacy to justify the foreclosure of judicial power which is vested under the supreme constitution seems to be crazy. Therefore, in the absence of the responsibility to follow legally prescribed procedures, any exercise of judicial function is clearly unconstitutional and in such cases it is up to the ordinary courts to interpret laws except testing the un/constitutionality, and to review decision of administrative agencies. This is, therefore, not whether court's power is taken away or not rather it is whether the institutions and body established to exercise judicial power are at the same time required to follow certain procedure as stipulated in the constitution.

Another, point based on which the constitutional standing of the laws that totally remove or partially limit the jurisdiction of courts can be checked is, whether it is within the intention and spirit of the constitution that the law maker issued laws that contain finality clause. A related issue is that when the legislature provides that decision of a tribunal or government institution is final, should it be taken for granted that it is meant to say they are not subject to review by courts.

Coming back to the first issue, the constitution does not contain an express provision that deals on the issue. What the constitution clearly provides is that judicial power is vested on courts both at federal and state level.<sup>140</sup> A related constitutional provision provides that the power of courts is limited only to justiciable matters.<sup>141</sup> Another important constitutional stipulation here is Art.78(4) which provides, as repeatedly discussed, judicial function may be given to other institutions other than ordinary courts only if such institutions are required to follow legally prescribed procedure. Courts, in particular, the Cassation Bench should see all these relevant constitutional provisions while addressing cases involving the legality of laws that declares decision of government agencies are final.

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<sup>139</sup> *Welday Zeru et al V. the Ethiopian Revenues and Customs Authority*, decision of the Federal Supreme Court Cassation Bench, file No.51790, decided on May 24, 2011.

<sup>140</sup> See Art.79 (1) of the FDRE Constitution.

<sup>141</sup> *Ibid*, Art. 37 (1)

From the above constitutional stipulations, one may safely conclude that ordinary courts are vested to interpret laws other than (arguably) the constitution provided that they are justiciable and the empowerment of judicial function to other organs cannot exclude judicial function so long as these organs do not employ legally prescribed procedure. Let us assume however that the legislature according to the constitution establishes institutions that exercise judicial power. Can the legislature establish such institutions that include a clause which says the decision of these institutions is final and not reviewable by courts? is another issue worthy discussion.

The constitution is not clear in this respect and in the absence of clear constitutional stipulation what one can do is to resort to general principles of law as recognized in the constitution and one of such principle that our constitution enshrined is the rule of law. The least common ground of the ideal, both in its formal and substantive conception, is that there must exist an independent tribunal before which an aggrieved individuals require a remedy for harms and injuries they earn from illegal act of government. The rule of law in Ethiopia is enshrined in broader scope that has an implication of including the substantive fairness of the various laws to be promulgated by the legislature. For instance, the re-enactment of urban land lease holding proclamation which provides that the decision of the appeal commission is final except in amount of compensation adversely affects the right to property and the right to access to justice as provided under the constitution.<sup>142</sup>

Furthermore, the constitutional entrenchment of fundamental rights and freedoms which is reflected by providing stringent amendment procedure of them<sup>143</sup> is another indication as to how our constitution tries to ensure the rule of law. Entrenchment of rights is among the mechanisms that constitutions employ to ensure constitutionalism and the rule of law. This becomes real only if the rights are respected and enforced by government bodies and most importantly the judiciary. However, the laws that provide decision of government agencies to be final do have an impact on the fundamental rights and freedoms and as it is discussed above this is interpreted by the Cassation Bench that courts do not have the power to review the decision of the tribunal.

If it is true that our constitution established the rule of law, it is logical to say that the supremacy of the constitution is possibly achievable if there is compliance of all government organs with the ideal in discharging their functions. One of the core values of the rule of law that government organs need to ensure is that individuals must be vested with legal remedy for the violation of legal rights and such remedy should be judicial, not administrative remedy only. Two reasons may be mentioned here; first, as discussed elsewhere above it is profoundly the province of the judiciary to say what the law is. Second, the laws that exclude court jurisdiction to review decision of the administrative agencies including decision of within agency tribunals provide an insufficient guarantee in the protection of the rights and freedoms in a country where the rule of law is constitutionally embedded. This is because appeal rights available at within agency tribunals cannot replace the role of courts because the tribunals do not possess the

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<sup>142</sup> See Art.40 and Art.37 of the FDRE Constitution respectively.

<sup>143</sup> Ibid, Art. 105(1)

constitutionally mandated independence that is vested to our courts,<sup>144</sup> thus are not trustworthy of remedying administrative grievances. This is because; they are part of the executive.

Another important point against which the laws containing ouster clause may better be challenged is the doctrine of separation of powers. Our constitution, as it can be inferred from its structure, recognizes the separation of powers and accordingly Art.79 of the constitution provides that judicial power is vested on the judiciary. Moreover, from the separation of powers perspective, the principle is that the judiciary is the ultimate guarantor of the legality of laws and actions of government.<sup>145</sup>

When the legislature empowers government agencies with decision making power which potentially affects individual rights and judicial power to review the decisions of such agencies is excluded, this goes clearly against the ideal; not only because the executive is carrying out judicial functions but also it reinforces a concentration of power in a single government branch (executive). Moreover, judicial review of administrative action is inseparable with the separation of powers doctrine<sup>146</sup> and to provide a legislation that excludes judicial review of agency decision completely defeats the very essence of separation of powers.

Thus, when the legislature precludes courts' power to review agency decisions, it apparently violates the separation of powers because this choice makes the executive branch the ultimate authority of determining its own compliance with the legislative standards.<sup>147</sup> This apparently reinforces the concentration of powers (administrative and judicial) in a single government organ (the executive) or single person as in the case of the Ethiopian Revenues and Customs Authority.<sup>148</sup>

Besides, case study of courts, in particular, the Cassation Bench confirms the fact that the separation of powers is wrongly applied not to defend judicial power but to narrow same and broadened the power of the agencies.<sup>149</sup> In the case *W/o Zelekawerk Bekele et al V. Agency for Government Houses*, the Cassation Bench ruled that courts determination of whether a house is nationalized by proclamation or not based on evidences is, not only beyond the jurisdiction of courts, but also usurps the power of the executive.<sup>150</sup>

### **3.5. The Pattern and Implication of Ouster Laws in Ethiopia**

It is not easy to establish a pattern on the laws that limit or remove court jurisdiction in Ethiopia. This is because, there is no similar trend of actions by concerned government institutions affecting court jurisdiction. For example, if we look at the decision of the CCI, it is difficult to come up with single conclusion as to whether it has the stand that narrows or extends judicial power. This is because, in some cases, the CCI ruled that disposing the constitutionality of laws

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<sup>144</sup> Ibid, Art. 78(1)

<sup>145</sup> Louis L. Jaffe, "Judicial Control of Administrative Action" (1965)

<sup>146</sup> Richard E. Levy and Sidney A. Shapiro

<sup>147</sup> Yemane Kassa.

<sup>148</sup> Ibid.

<sup>149</sup> See Assefa Fiseha, p19

<sup>150</sup> See Decision of the Federal Supreme Court Cassation Bench, file No.30704, decided on March 27, 2008

other than those issued by federal and state legislative organs<sup>151</sup> does not amount to review of constitutionality of laws, hence courts can assume jurisdiction. In some other times the CCI decides in contradiction to its former decision. What could be generally drawn is that, most of the legislations issued in the early parliamentary days removed court jurisdiction partly; i.e. they limit judicial jurisdiction either from reviewing decision of within agency tribunals regarding issues of fact or allowing courts to assume jurisdiction only as to specific cause of action.

Moreover, it is easy to consider the decision of the Federal Supreme Court Cassation Bench as one of an equivalent to the many laws that oust judicial power since its decisions have binding effect on other courts. Thus, decisions of the Bench as to “laws that oust judicial power” are also important in establishing the pattern of the laws that remove or limit court jurisdiction. Accordingly, as discussed elsewhere above, in its decisions, the Bench interprets the laws that provide decisions of agencies and tribunals therein are final as it means their decisions are not subject to review by ordinary courts. Being a court of law, it would have been appropriate for the Cassation to defend judicial power from being narrowed down by laws containing finality clauses. Furthermore, the stand of Bench seems to be assisting the executive in broadening its power by restricting courts’ review power.

The most recent pattern of the court stripping laws is made by making rights non-justiciable there by removing court’s jurisdiction completely. This argument can easily be deduced from the decision of the CCI and the Cassation Bench that in both cases it is held that it is possible for the legislature to make some rights, in particular those related to administrative grievances, non-justiciable.<sup>152</sup> Thus, the legislature comes with very dangerous way of ousting courts power which goes against the entrenchment of individual rights that is necessary for the rule of law.

From the previous discussion, it is practical to establish at least three patterns regarding the laws that preclude or limit judicial power and decisions of the CCI and the Cassation Bench that have a clear impact on court jurisdiction. The first takes the pattern on limiting judicial power by misinterpreting the separation of powers in a way to restrict judicial power and defending the power of the executive. This is commonly discernable from the decision of the Cassation Bench. The second pattern seems to rely on supremacy of the legislature and accordingly, it is stated both by the CCI and the Cassation Bench that judicial power of courts in Ethiopia emanates from laws, including legislation, and courts cannot claim to have an inherent judicial power. Finally, both the CCI and the Cassation Bench come up with new trend that courts can assume jurisdiction only as to justiciable matters and it is up to the legislature to determine what matters are justiciable.

The combination of all the patterns discussed here above provides us with the implication that judicial power in Ethiopia is in the way of being fully eroded. Therefore, we can conclude that,

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<sup>151</sup> See Ethiopian Blind Persons Vs. Oromia Education Bureau and Jimma College of Teachers Education, Decision of CCI, File No. 4 December 2003.

<sup>152</sup> See decision of CCI on Ato Ashenafi Amare et al Vs. the Ethiopian Revenues and Customs Authority, File No.101 February 2010 and Decision of the Cassation Bench on Ato Welday Zeru et al Vs. the Ethiopian Revenues and Customs Authority, File No.51790, May 24, 2011.

there is a clear indication of eroding jurisdiction of courts in Ethiopia which in turn makes aggrieved individuals (by decision of administrative agencies) without remedy.

## **Conclusion**

From the previous discussions, the following conclusions can be deduced. Even though judicial power is conventionally vested on ordinary courts, the nature and scope of such power varies country to country. Judicial power in general and judicial review in particular may be expressly vested in constitutions or emanate from the actual power that courts exercise.

Regarding that of our country, the writer, argues that the mere fact that the constitution contains an express stipulation which vests the HoF/CCI to decide the un/constitutionality of laws issued by federal and state legislatures should not be construed to mean that the courts are fully restricted from interpreting the constitution.

The debate on judicial power in Ethiopia is not limited to the above discussed issue. Apart from the debate as to the scope of constitutional constraint, judicial power in Ethiopia remains to be subject to arguments on the ground that it is being foreclosed by legislations and executive acts in a way unintended by the constitution. Despite the constitution expressly prohibits the establishment of any organ that takes away judicial power without the need to follow legally prescribed procedures, there are many instances where the legislature and the executive are engaged in divesting of the judiciary from its power. Two important facts may be forwarded to prove the allegation that the legislature is engaged in a task of excluding courts' jurisdiction of reviewing decisions of administrative agencies. First, there is a trend that shows the legislature is busy of issuing laws that takes away judicial power and vested it to institutions that are not required to follow legally prescribed procedures. This is against the spirit of the constitution which intends to ensure due process of law by requiring institutions other than ordinary courts can exercise judicial function only if they can follow legally prescribed procedures. Second, the legislations may be contested on the ground that they incorporate finality clauses. The laws that contain finality clauses negate judicial review of decision of administrative agencies which is hardly easy to conclude that it is in line with the constitution. Making an agency the sole and ultimate determinant of its compliance with its own standards is not only absurd but also reinforces the concentration of executive and judicial powers on the same organ. The case become worst when one considers the power to render a final decision is legislatively vested to agencies that are not required to follow legally prescribed procedures. The laws with finality clauses are subject to challenge, not only for the reason that they are exercised by institutions that do not follow legally prescribed procedures as required by the constitution, but also they go contrary to the right of access to justice of individuals which is recognized under our constitution thereby leaves with no remedy for an alleged abuses of power by administrative agencies.

Apart from the parliamentary legislations, the stand of the Cassation Bench seems to advocate the act of the other two branches. In many of its decisions, the Bench confirmed that once a decision of an agency is legislatively made to be final, courts do not have the power to review it.

More regrettable is that, the Bench has established a jurisprudence which is a direct threat to courts' power by stating that "courts in Ethiopia do not have an inherent power but a power which emanates from law". More worrisome, both the CCI and the Cassation Bench has come up with an outrageous jurisprudence that encourages the legislature to continue in the task of foreclosing judicial power that they establish a precedent that the legislature can decide which matters are justiciable and which are not. From the overall discussion, it can be established a pattern that the legislature, the CCI, and the Cassation Bench are in the task of eroding judicial power and in contrast, strengthening the unconstrained discretion of the executive.

## Chapter Four

### Access to Court and the Concept of Justiciability: *the Case of Urban Lands Lease Holding Proclamation*

#### 4.1. Justiciability

As discussed elsewhere, it is true that the cornerstone of judicial review is the concept of justiciability for it is only a “justiciable” matter that can be subjected to judicial review.<sup>153</sup> It is a condition that a person needs to comply with, in order to access a court or other similar institution. However, the concept, which is used frequently, continued to be debatable for its scope is not definitely known across legal systems. To be precise, the term “justiciability” has a common law origin and refers to the suitability for, or amenability to, judicial review of a particular administrative decision or class of decisions.<sup>154</sup> Its core concerns lie in a belief that there are some decisions or classes of decisions which are not appropriate for the courts to review either because they are beyond the institutional competence of the court or would involve stepping outside the bounds of its appropriate constitutional role.<sup>155</sup> The reasons for a subject matter to be non-justiciable are various.

These include (i) deference to matters of high policy and to Parliament; (ii) lack of judicial knowledge and effectiveness; (iii) the absence of objective standards; (iv) the need to trust the executive in an emergency; (v) the existence of other remedies; and (vi) worries about hampering government efficiency.<sup>156</sup> Accordingly, prerogative powers such as those relating to the making of treaties, defense, granting mercy, awarding honors, the dissolution of parliament and the appointment of ministers as well as other similar matters are considered as non-justiciable, may be, because their nature and subject matter are not to be amenable to the judicial process.<sup>157</sup>

The dichotomy between justiciable and non-justiciable matters compels the courts to address the question of which issues are amenable to the judicial process under the principle of separation of powers. This poses questions about the functions of the courts. Alder argues that the issue should not be resolved by looking at the source of the power (statute or prerogative) but upon its subject matter. Accordingly, if the subject matter is amenable to judicial review (i.e., a matter which, under the separation of powers, the courts are entitled to consider) and particularly concerns the rights or legitimate expectations of individuals, the matter is open to judicial review.<sup>158</sup>

Generally speaking, justiciability can be considered as a doctrine which imposes a serious limit on judicial power to entertain cases. Nonetheless, its origin and scope varies from country to country. In the common law legal tradition, where the term is said to be originated, it is

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<sup>153</sup> I. Ellis-John, “*Essential Administrative Law*” (2<sup>nd</sup> ed., 2001), p.9

<sup>154</sup> Chris Finn, “*the Concept of Justiciability in Administrative Law*” (2007). As cited by Yemane Kassa. (Herein after referred as Chris Finn)

<sup>155</sup> Ibid.

<sup>156</sup> J. Adler, “*General Principles of Constitutional and Administrative Law*” (4<sup>th</sup> ed., 2002). (Herein after referred as J. Adler)

<sup>157</sup> Ibid.

<sup>158</sup> Ibid.

considered as a series of self-imposed restraints by the judiciary founded in a view as to the appropriate constitutional balance between the respective roles of the Executive and the Judiciary.<sup>159</sup> To be specific, five major justiciability doctrines are developed in the United States, namely the prohibition of advisory opinion, standing, ripeness, mootness, and the political question doctrine.<sup>160</sup> In South Africa, all rights recognized as bill of rights are made to be justiciable.<sup>161</sup>

No matter how the concept of justiciability is perceived in many legal systems, it could generally be said that justiciability/non-justiciability is determined based on two standards; on the status of the decision maker and the nature of the subject matter.<sup>162</sup> According to the first standard, some cases may be rendered to be outside of the jurisdiction of courts because the constitutional status given to courts is insignificant, whereas in the second case the character and nature of some subject matters necessarily requires judicial self-restraint to review them.<sup>163</sup> In the latter category, some prerogative rights of the executive (such as war, security, and treaty agreements), political questions and complex policy issues are included.

## **4.2 Justiciability as a Limit on Judicial Power in Ethiopia**

As discussed above in Ethiopia, the concept of justiciability is not clear and thus raises series of issues. The Constitution only provides justiciability as one limit on judicial function. It provides that “everyone has the right to bring a justiciable matter to and to obtain a decision or judgment by, a court of law or any other competent body with judicial power”.<sup>164</sup> It is apparent that the Constitution does not provide which matters are justiciable and which are not, and who should have an authority to determine the issue. Another issue that can be raised here regarding the provision is which organs of the government are legitimate to exercise judicial function under the Constitution? And does exercising judicial power by other competent bodies other than courts make claims non-justiciable? These and other related issues will be dealt here under.

### **4.2.1. Whose Power is it to Decide on Matter of Justiciability?**

As discussed above, the Constitution does not give us a clear response to the issues of which matters are justiciable and which are not, and who decides such big issues. The issue was raised during the making of the Constitution by the Constitutional Assembly. Some members of the Assembly stated that the phrase “justiciable matter” should be excluded from the provision since it raises the issue of who determines it but the idea did not get the majority support.<sup>165</sup> The Assembly adopted the current version of the provision on the reason that since there must be

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<sup>159</sup> Chris Finn, p-12

<sup>160</sup> Erwin Chemerinsky, p.30.

<sup>161</sup> Constitution of the Republic of South Africa, 1996, Section 38.

<sup>162</sup> Chris Finn.

<sup>163</sup> Ibid.

<sup>164</sup> See Article 37(1) of the FDRE Constitution.

<sup>165</sup> Minute of the Constitutional Assembly of the Transitional Government of Ethiopia, v.5 December 01-04, 1994 discussion of the Assembly on Art.37 (1)

some administrative matters that may not be seen by judicial bodies the phrase “justiciable matters” is necessary.<sup>166</sup>

Nonetheless, the Assembly did not address which types of administrative matters are non-justiciable and who determines them. If we see the practice, one may witness different experiences. For instance, it seems that the HPR is empowered to determine the issue of justiciable and non-justiciable matters. In the case of *Ashenafi Amare et al vs. the Ethiopian Revenues and Customs Authority*, the CCI firmly recommended that since the judiciary is established within parliamentary system, it is within the parliament to decide whether these issues are justiciable or not, provided that it is within the constitutional limit. It further stated that regarding the issue of whether or not a matter is justiciable, the decision of the legislature, which was made according to the Constitution saying this matter is justiciable and others not, is correct even though it could be said that it narrows judicial power.<sup>167</sup>

The CCI did not stipulate the possible constitutional limitation on the power of the HPR to determine justiciable and non-justiciable matters. Nor does the Constitution contain a clause that helps to address the issue. Similarly, the Cassation Bench, in the case of *Welday Zeru et al v the Ethiopian Revenues and Customs Authority* confirmed the decision of the CCI saying it is up to the legislature to decide the issue of justiciability.<sup>168</sup>

However, a reading of the document, which provides a brief explanation on the finally approved draft of the Constitution, proves the otherwise intention of its makers. While giving explanation on access to justice, it provides two scenarios by saying there are matters that are to be decided by courts. There are also other matters that require administrative decisions; though these administrative decisions may be brought to courts. Furthermore, the discussion by the Constitutional Assembly on the issue provides that “generally a person should not be left without recourse when he/she is aggrieved by a decision of government institution; rather one is entitled to bring his complaint to another government institution and get remedy”.<sup>169</sup>

From the discussion of the Assembly, it is easily discernible that the legislature is not constitutionally empowered to decide on issues of justiciable and non-justiciable matters. Apart from the minutes of the Constitution, the spirit of the Constitution does not support the empowerment of the legislature to decide issues of justiciability. Even though the legislature is supreme to the other branches, it is still subordinate to the Constitution. The reasoning given by the CCI and the Cassation Bench trigger series of questions. If the legislature is said to be vested with the power to determine issues of justiciability, what is the guarantee that the fundamental rights will not be made non-justiciable by legislation? If the legislature can limit the

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<sup>166</sup> Ibid.

<sup>167</sup> See decision of CCI on Ato Ashenafi Amare et al Vs. the Ethiopian Revenues and Customs Authority, File No.101 February 2010.

<sup>168</sup> See Decision of the Cassation Bench on Ato Welday Zeru et al Vs. the Ethiopian Revenues and Customs Authority, File No.51790, May 24, 2011.

<sup>169</sup> Minute of the Constitutional Assembly of the Transitional Government of Ethiopia, v.5 December 01-04, 1994 discussion of the Assembly on Art.37 (1)

enforceability of fundamental human rights, why is the entrenchment of such rights needed under the Constitution as it is reflected in their amendment procedure?

#### **4.2.2 Justiciability and Legislative Override of Courts' Jurisdiction in Ethiopia**

Even though it is uncontested that justiciability is one of the constitutional limits on the power of ordinary courts, stripping court's jurisdiction by the legislature and making certain claims non-justiciable is open to constitutional debate. Whether the legislature can remove or limit court's jurisdiction varies from country to country and depends on the type of system established in a country.

As discussed in the previous sections, in Ethiopia, there are legislations which totally remove or partially limit court's jurisdiction and it seems that stripping court jurisdiction is the new threat to the judiciary these days. In the last two decades of constitutional experience in Ethiopia, significant numbers of laws that totally or partly divest judicial power are issued. The Urban Lands Lease Holding Proclamation, which provides that the decision of the Urban Land Clearing and Compensation Cases Appellate Tribunals delivered both on points of law and fact shall be final except on issues of compensation, is among the laws that foreclose judicial power.<sup>170</sup> The law prohibits citizen's right to challenge the legality of measures taken by the concerned government authority, for instance, the legality of a lease issued by the agency, and excludes court's power to entertain such issue.

#### **4.2.3 Justiciability and Exercising Judicial Power by Other Organs**

Art.37 of the Constitution gives a clue that other competent organs, other than ordinary courts, may be established to exercise judicial function. A consequential issue is, therefore, whether vesting such organs with judicial power mean ousting power of ordinary courts regarding the same subject matters. Whether it means claims which are normally under the jurisdiction of ordinary courts are non-justiciable for the mere fact that such power is vested to other organs. It seems that there is misconception of two concepts; making rights non-justiciable and giving the power to dispose certain claims to other institutions other than ordinary courts.

The FDRE Constitution provides that judicial power may be taken away from ordinary courts and given to other institutions that follow legally prescribed procedures.<sup>171</sup> This should not however be construed that those matters vested to other institutions exercising judicial power are made non-justiciable. Rather, it was meant that for some policy and practical reasons, some judicial powers should be given to other institutions. If a matter is non-justiciable before ordinary courts, it is also non-justiciable to other institutions that exercise judicial power for what they are exercising is judicial power. Besides, it is not non-justiciable for ordinary courts to assume jurisdiction of administrative claims for the mere fact that the power is given to the tribunal.

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<sup>170</sup> See Art. 29(3), of Urban Lands Lease Holding Proclamation, Proclamation No. 721, Federal Negarit Gazeta Year 2011, No.4

<sup>171</sup> See Art. 78(4) of the FDRE Constitution

Therefore, judicial powers given to other institutions other than ordinary courts are necessarily justiciable matters. If not, the institutions are not exercising judicial power and are not institutions which are referred to under Art.78 (4) and 37(1) of the Constitution.

Another issue worth considering is as to which organs other than ordinary courts are competent to exercise judicial function under the Constitution? The Constitution seems to be clear in this regard. According to Art.78 (4), institutions or other bodies other than ordinary courts that do not follow legally prescribed procedures cannot be established to exercise judicial functions. From this, it is very clear that establishing an organ or institution vested with judicial function but that does not follow legally prescribed procedures is unconstitutional (thus, in our case the appellate commission established by the HPR under the Urban Lands Lease Proclamation is not in line with the constitution).

As discussed above, practically however, there are institutions that are established to exercise judicial function while there is no legally prescribed procedure they may follow. The Urban Land Clearing and Compensation Cases Appellate Tribunal established by the Urban Lands Lease Holding Proclamation is not required to follow any procedure; instead, it is explicitly empowered that it shall not be governed by the ordinary Civil Procedure Code while conducting its functions.<sup>172</sup>

As discussed elsewhere above, decisions of the Cassation Bench also reveals that courts have jurisdiction to see justiciable matters if such power is not legally given to other institutions that exercise judicial function. The Bench however did not attempt to see whether the organs are established according to the law (the constitution) and required to follow legally prescribed procedure.

In most cases, the Cassation Bench interprets Art.37 (1) of the Constitution saying that courts may adjudicate a complaint before them when judicial power on the matter is not vested to other organs by law. The writer, however, contends that the decision as being made by relying on the literal understanding of a single constitutional provision. It is true that Art. 37(1) of the Constitution tells us the fact that other organs that exercise judicial power may be established and in such cases it provides that individual complainants do have the right to bring their cases before such organs. However, it does not tell us how these organs should be established. From these constitutional stipulations, one may safely conclude that ordinary courts are vested to interpret laws other than (arguably) the Constitution provided that they are justiciable. Thus, the mere empowerment of judicial function to other organs cannot exclude courts of their jurisdiction particularly where such organs do not employ legally prescribed procedure while deciding matters.

Another important point to discuss here is that the relationship between access to court and justiciability. Access to court and the issue of justiciability are interlinked and usually

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<sup>172</sup> See Art. 30(8), of Urban Lands Lease Holding Proclamation, Proclamation No. 721, Federal Negarit Gazeta Year 2011, No.4

inseparable. Access to court is one aspect of access to justice. Access to justice is not a one end concept instead it is a continuum which starts with the recognition of rights in substantive laws up to the different forms and stages of enforcement. As discussed above it is a broad concept which may be manifested not only through the physical accessibility of judicial institutions but also legal fairness of the process, appropriateness and expectability of outcomes, enforceability of those ascertained rights, as well as timely disposition of cases.<sup>173</sup>

Access to justice is expressly recognized under our constitution as one of the fundamental human rights.<sup>174</sup> One may tempted to question the relevance of including a separate and express constitutional provision on access to justice since the rights protected in the constitution necessarily. Thus, access to court as one aspect of access to justice is constitutionally recognized to provide protection against actions by a state or other persons which deny access to a court or other appropriate tribunal. However, it is clearly provided by the constitution that the right to access to justice is a right that can be exercised when the matters are justiciable. Therefore, justiciability is one constitutional constraint up on the right of access to court and judicial power.

Justiciability is a term which is used many times but continued to be debatable for its scope is not definitely known over legal systems. It is a condition that a person needs to comply with in order to access a court or other similar institution. It may vary country to country.

When we look at that of our country the stand of the CCI and the Cassation Bench does not also seem to be compatible with the intended spirit of the constitution. This is true because the rule of law as discussed in chapter two requires the recognition of basic rights together with an independent tribunal capable of giving redress to an alleged violation of rights. When the constitution provides justiciability as one limit on judicial power, it does not seem to make any administrative issue that the legislature wishes can be outside the jurisdiction of courts. However, the trend shows that claims against administrative agencies can be made non-justiciable any time the parliament wishes.

Substantive limitation of power by establishing a fundamental rights regime in a constitution alone serves nothing in preventing government tyranny and ensuring the rule of law; rather constitutional supremacy, making fundamental rights justiciable, and entrenchment of same are equally important.<sup>175</sup> Recognizing rights in the constitution is meaningless unless they are made to be implemented by making them justiciable. Furthermore, to argue that the legislature is with the discretion to limit rights based on justiciability ground amounts to amending the entrenched human rights chapter in a procedure which is very simple than the one provided in the constitution.<sup>176</sup>

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<sup>173</sup> Connie Ngondi-Houghton, "Access to Justice and the Rule of Law in Kenya" (A Paper Developed for the Commission for the Empowerment of the Poor Nov.2006)

<sup>174</sup> See Art. 37 of the FDRE Constitution

<sup>175</sup> De Waal et al,

<sup>176</sup> See Art.105 of the FDRE Constitution.

When one sees the urban lands lease holding proclamation in light of the above discussed points, it is apparently open to potential abuses by the power holder. It is not untenable, for instance, to argue that the proclamation may be used to oppress some group of land owners from their land based on the agency's will in the name of public purpose.

#### **4.3. The Practical Judicial Response to acts of the Parliament**

In the foregoing discussions, it is established that the power of courts in Ethiopia is being eroded by the issuance of legislations and regulation as well as decision of the CCI in a way that has substantial damage on the protection of rights vested in the constitution. The government may have its own policy reasons that justify the promulgation of laws that imposes restrictions on judicial power and enjoyment of some rights. However, the policy justifications that may be forwarded by the government cannot be used by the judiciary for the same purpose. This is because under the rule of law, rights should not be subjected to limitations to achieve the temporary policy purposes of a government and citizens are not required to be instruments of government policy at the cost of their basic rights and freedoms. This could be realized if there is strong and independent judiciary that could defend its power and rights of citizens against encroachment by the government.

To see the response of the judiciary regarding the laws that divest it of its jurisdiction, judicial response is not consistent. In fact, courts can challenge the laws that partially limit or totally remove its jurisdiction to the extent their power limit permits. However, even within the power limit there is diverged court experience so far. For instance the Federal First Instance Court has showed inconsistent determination of cases regarding laws that restrain judicial power. In some cases, the court made an attempt to assume jurisdiction of reviewing decision of administrative agencies including those the decision of which is said to be final by legislations. In the case of *heirs of Nur Beza Terega vs. the Ethiopian Privatization and Public Enterprises Supervising Agency*, the court held that courts do have an inherent power to review decision of administrative agencies regardless of whether the decision of the agency is made to be final by a statute.<sup>177</sup> In other cases, the court adopted a different scenario of interpreting ouster laws. In the case *Ato Mogninet Tiruneh vs. Agency for Government Houses*, however, the court declined to see the case on the ground that it does not have jurisdiction to see the case since the decision of the Board in the agency is made to be final by a legislation.

In practice the Federal High Court has similar experience regarding laws that partially limit or totally remove court jurisdiction. In the case *W/o Zeleka Werk Bekele V. Agency For Government Houses*, the court assume jurisdiction to hear appeal brought before it despite the agency argued that courts do not have the power to determine whether or not a house is taken by proclamation No.47/1975.<sup>178</sup> Similarly, the court, in the case *W/o Mogninet Tiruneh V. Agency for government*

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<sup>177</sup> See decision of the Federal First instance court, File No.4893, March25, 2002

<sup>178</sup> See the Federal High Court civil file No.41668, May2, 2002.

*Houses*, ruled that it has jurisdiction to review the decision of the agency on a house the ownership of which is contested by a party.<sup>179</sup>

Cases decided by the Federal Supreme Court shows different trend. In the case *Ato Jemal Mehamed V. The Ethiopian Revenues and Customs Authority*, the court upheld the decision of the Federal Civil Servant Administrative Tribunal on the ground that the court does not have the power to review decision of the Authority made based on Art.37 of the regulation.<sup>180</sup>

The experience of the Cassation Bench, as it is repeatedly discussed in the preceding discussions, is however restrictive of judicial power. In many of its decisions, the Bench interprets the laws that vest a final decision making power as not reviewable by ordinary courts. In its recent decision, the Bench strengthens its stand of restrictive interpretation of judicial power and generous recognition of broad discretionary power of administrative agencies. The court established that judicial power in Ethiopia emanates from laws, thus the legislature can limit or remove court jurisdiction.<sup>181</sup>

In general, the response by the judiciary, in particular the Federal Supreme Cassation Bench, to the laws that partially limit or totally remove court jurisdiction seems to be contestable for at least three reasons. First, there is misinterpretation of the separation of powers in a way that removes courts from their constitutional mandate. Second, there is misconception of the concepts of making rights non-justiciable on the one hand and giving the right to dispose some claims to other institutions other than ordinary courts on the other hand. Our constitution provides that judicial power may be taken away from ordinary courts and given to other institutions that follow legally prescribed procedures.<sup>182</sup> This should not however be construed to mean that those matters vested to other institutions exercising judicial power are made non-justiciable. Rather, it was meant that for some policy and practical reasons, it was made that some judicial powers should be given to other institutions. If a matter is non-justiciable before ordinary courts, it is also non-justiciable in other institutions that exercise judicial power.

Finally, there is the practice of willful relinquishment of jurisdiction by courts to see some claims brought before them. For instance in the Case *Ato Ashenafi Amare et al V. the Ethiopian Revenues and Customs Authority*, the Civil Service Tribunal has failed to see the case based on the issue whether the Art.37 of the regulation is compatible with the parent legislation.<sup>183</sup> Instead, the Tribunal simply relinquished the possibility of deciding the case by itself and referred it to the CCI for the mere fact that the provision is said to be contrary to Art.37 of the constitution even though it could have been disposed of by looking against the parent legislation.

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<sup>179</sup> See the Federal High Court, File No.74148, October 20, 2009.

<sup>180</sup> See the Federal Supreme Court Civil File No.48872, October 20, 2009

<sup>181</sup> See Decision of the Federal Cassation Bench file No. 23608 November 12, 2010.

<sup>182</sup> See Art. 78(4) of the FDRE Constitution

<sup>183</sup> See decision of the Federal Civil Service Tribunal, file no.00830

#### **4.4. Fate of the Judiciary in the Future**

As it is discussed in the preceding sections, court jurisdiction in Ethiopia is limited and constrained both by the constitution and other laws. Constitutionally speaking, courts are mandated to hear any justiciable matter brought before them provided that such matters are not expressly given to the HoF or to other institutions that are established to exercise judicial function according to the constitution.

The constitution recognizes the fact that institutions other than ordinary courts may be established provided that they follow legally prescribed procedures. However, there are many institutions that are vested with judicial power but do not follow legally prescribed procedures the urban lands lease holding established such type of appeal commission. Similar cases may not be seen by Ethiopian courts, not only for the same reason, but also because of the fact that such power is constitutionally vested to other organs (the HoF/CCI). Besides, courts in Ethiopia may restrain themselves from entertaining cases that are appropriate to be handled by another department based on the separation of powers.

Moreover, court jurisdiction in Ethiopia is being foreclosed by proclamations and regulations making some cases as non-justiciable in a way unintended by the constitution. What is more worrisome is courts' power is further stripped by the consistent and repeated decision of the Federal Supreme Court Cassation Bench confirming the legality and appropriateness of the laws that stripped the judiciary of its power. Judicial jurisdiction in Ethiopia is further restricted by self-relinquishment of jurisdiction by courts including the Cassation bench. There are many instances which show courts restraining themselves for legally ungrounded reasons. For instance, while they can dispose an issue involving the legality of a regulation by looking its compatibility with the parent legislation, they are observed to refer it to the CCI/HoF for the mere fact that the regulation is contested for its violation of a constitutional right. In the absence of jurisdiction to decide on constitutional issues, the silence of the courts at least to solve the case by looking the contested law in light of the parent legislation, the only alternative left to the court, is regrettable.

From the preceding discussion, what could soundly be argued is that unless and until the HoF/CCI stands to guard court jurisdiction from being usurped or encroached by the other organs, there is no another mechanism to ensure that the already limited court's power is not further overtaken. This argument becomes apparently convincing if one discovers the fact that, unlike the other two branches, the judiciary branch is not made to be the beneficiary of the complaint procedure before the CCI which would help it to challenge any law that potentially affects its constitutional mandate on the ground of separation of powers.

Thus, "what is left to the judiciary" is practically speaking, what is permitted to the judiciary by the other branches. This is evident if one looks the reality witnessed in the last two decades that despite the fact that many laws that stripped court jurisdiction are promulgated, it is difficult to get a case decided by the Cassation Bench or the HoF/CCI that nullifies a law on the ground that it usurps or encroaches up on the power of the judiciary. Instead, many of the cases appeared

before these organs revealed that judicial power is narrowly construed while the power of the other branches is extended.

## **Conclusion**

The urban lands clearing agencies are key institution in the economic and social development of every country; Ethiopia is not exception to this. However, the proclamation removes jurisdiction of courts to review the decision of the Appeal Commission which leaves the authority without any check.

The promulgation of the proclamation with a content having adverse effect on jurisdiction of courts and individual rights is mainly justified by the need to provide land for the need of urbanization including all public infrastructures. What is more bad is that, both the CCI and the Cassation Bench established a precedent in the judicial and constitutional system that the legislature is vested with the power to determine which matters are justiciable and which are not, accordingly claims of restitution of land and other issues except for compensation is held to be non-justiciable. The implication of such precedent is, at least until the CCI/HoF comes with different decision on the issue, that the legislature and the executive are with no concrete constraint from involving in making laws that limit on judicial power and rights of individuals. Other levels of courts has voluntarily relinquished their legitimate power to review the compliance of the some subordinate law with the parent legislation rather they refer to the CCI merely because the subordinate law is alleged to be contrary to the constitution.

The promulgation of the proclamation with such content and the confirming decision by the CCI and the Cassation Bench may be attributed to the absence of express constitutional limit on the power of the legislature to issue laws that has adverse effect on power of courts and rights of persons. The absence of the administrative justice clause and general limitation clause may be considered as a comfortable legal gap for the legislature and executive to issue laws that make rights recognized in the constitution subject to unjustified limitations. However, this should not be construed to mean that there is no constraint in the constitution up on the power of the legislature and the executive. In a country where the rule of law is firmly established government power is limited not only an express constitutional stipulation but also by an implied limitations that the constitution is enshrined.

It could be said that to ensure the rule of law, our constitution enshrine some principles that pose an implied restrictions on the power of all government branches in general and the legislature in particular. The first is the separation of powers which vests each government branch should not interfere in the functions of the other. Accordingly, there is an implied limitation for the HPR not to interfere in the constitutionally vested power of the judiciary. Another implied limitation that posed to the legislature is the due process of law which obligates the government to give adversely affected persons some type of hearing in which they can present factual and legal arguments. This is provided in the constitution which says that judicial power should not be vested to institutions that do not follow legally prescribed procedures. But the agency is vested

by the proclamation to determine its compliance against its own standards without the need to follow at least procedural justice. The rule of law is also ultimately disregarded by the power of agency under the proclamation. This is because the power of the agency runs contrary to the procedural and substantive rights of individuals as well as removes courts' jurisdiction. The proclamation removed the remedies that land owners could have claimed since a claim for remedy is barred by making the right non-justiciable. The proclamation though has strong policy justification, apparently and profoundly more damaging individual's right to access justice. Not only this, the proclamation and the decisions that confirm constitutionality of ouster legislations and further empowerment of the legislature to be the ultimate determinant of rights to be or not to be justiciable is contrary to the supremacy of the constitution.

Moreover, in the absence of strict separation of powers between the legislature and the executive, granting the legislature with ultimate power to determine justiciability issues is obviously against the separation of powers, at least between the judiciary and the other branches in concert. In a country with parliamentary system where executive and legislative powers are blended together, the only guarantee to the rights and freedoms protected in the constitution is the existence of strong judiciary that can challenge administrative decisions through review power. Generally, from now on there is no remedy available, both within and outside the authority, to land owners even if they are dismissed from their land without the need for public purpose. Nor does a guarantee that the jurisdiction of courts have right now will not be completely taken away by similar process is available in the present future.

## Chapter Five

### Conclusion and Recommendations

#### 5.1. Conclusion

The FDRE Constitution designed mechanisms that are very important to ensure its ambitions which include broad recognition of human rights together with their entrenchment, by incorporating fundamental principles such as the separation of powers and rule of law, and establishing an independent judiciary vested with all judicial functions. Such substantive and structural arrangements that the constitution provided are intended to have at least three major objectives; proving that individual rights will not be restrained by ordinary action of government, ensuring that governmental power is not concentrated in a single branch, and making citizens available with remedy for alleged infringement of their rights by the government actions. In order to realize these values, the constitution established distinct institutions as its guardian, the HoF/CCI, which is vested to play a watch dog role in realizing that its values and principles are complied by government organs thereby ensuring the supremacy of the constitution.

However, the constitution has continued to be a source of contention for many reasons especially regarding the role of the judiciary in constitutional interpretation vis-à-vis the HoF/CCI and many literatures have been witnessed so far in this regard. Some argue that courts in Ethiopia cannot interpret the constitution either to determine the scope, content and meaning of a constitutional provision or to review the constitutionality of laws save for direct application when the text is clear. Others argue that courts are only divested of the power to review the un/constitutionality of laws issued by federal and state legislative organs. Considering relevant literatures and relevant provisions of the FDRE Constitution, the writer found that Ethiopian courts are not precluded from interpreting provisions of the constitution to determine the scope, content and meaning of the same provided that the matter is justiciable, but cannot review the constitutionality of laws, be it proclamation, regulation or directive.

Apart from the constitutional limits, courts jurisdiction is also being partially limited or totally removed by legislations and other subsidiary laws that are issued contrary to the constitution. Just in the aftermath of the constitution and until now, many laws having ouster clause are issued by the House of Peoples Representatives and the executive. These laws provide that courts will not have jurisdiction to hear some claims arising from decision of administrative agencies that are said to be final. At bottom, these "ouster clauses" raise serious questions about relationships among organs of government, judicial independence, and constitutionalism. They are against the constitutionally entrenched rights particularly the right to access to justice provided under article 37 of our constitution.

By making rights non-justiciable, the court stripping laws deny both the judicial power to review administrative decisions and the right of individuals to go to court for remedy against infringement of their rights by the executive (administrative agencies and/or tribunals). In fact,

the constitution provides the possibility where by judicial power may be taken from ordinary courts by legislations. Accordingly, judicial function may be taken from ordinary courts and vested to other institutions only if they are required to follow legally prescribed procedures. Such constitutional stipulation is not without implication rather the constitution is providing a shield on judicial power against arbitrary usurpation by other branches and strives to ensure some degree of due process of law and thereby fairness. However, the legislature seems to forget this very principle of the constitution and simply takes judicial function from courts and vested it to agencies and appeal commission established internally within the law itself whose decision is final no matter whether such agencies are required to follow legally prescribed procedures. The effect is clear that the laws make an agency the sole and ultimate determinant of its compliance with its own standards which is, not only irrational, but also reinforces the concentration of executive and judicial powers on the same organ of government which in turn results in government tyranny.

The ouster clauses are clear indicatives of the fact that the other two branches are conspired to increase their power against the judiciary which is a direct threat and violation of separation of powers. Any threat on separation of powers can, therefore, be regarded as a threat posed on the independence of the judiciary the resultant effect of which is the deterioration of the judicial function in reviewing acts of other branches of government. It is important to note here that it is the constitutionally mandated independence that makes the choice of the judiciary to hold the Executive Branch in check (through review) legitimate than the appellate tribunals within the executive which is assumed to be partial. Thus, to make decision of the agencies final is against the rule of law.

Apart from the legislative restraints, the decisions of the CCI and of the Federal Supreme Courts Cassation Bench, particularly on the constitutionality of such laws are neither defensible nor justifiable. The CCI and the Cassation Bench has developed a precedent which provides that it is up to the legislature to decide which matters are justiciable and which are not. Both give emphasis on the fact that the constitution established parliamentary system and upheld the supremacy of the parliament while they failed to vindicate it in light of the supremacy of the constitution as provide under article 9(1) of the document itself.

A strange decision of the Cassation Bench which says that the power of the judiciary emanates from a law (which includes legislations and regulations) may call the confusion whether these bodies understood the rule of law as “government of the constitution” or “government of legislations”. The absence of clear constitutional stipulation as to the right to administrative justice may be considered as a comfortable legal gap for the legislature and executive to issue laws that make rights recognized in the constitution non-justiciable. However, it is discovered that government power is not only restricted by an express legal principles rather there are an implied restrictions that our constitution enshrined, such as separation of powers, rule of law, human rights and justiciability. Unfortunately, the CCI failed to test the constitutional validity of

ouster clauses from these angles and as a result it failed to dispose its responsibility to preserve the supremacy of the constitution.

Ouster laws, decision of the CCI and the Cassation Bench indeed proved that the parliament is left at absolute power to authorize an agency to violate the law with impunity and without judicial oversight of any kind. This becomes true if one considers that the CCI failed to articulate whether removing court jurisdiction by the executive is constitutionally appropriate. The Cassation Bench similarly upheld that the executive removes court jurisdiction to hear claims reinstatement based on the power delegated from the legislature. Thus, the legislature is left with no limit regarding imposing limitations on rights and delegating its powers to the executive.

The overall trend shows that in Ethiopia, the rule of law in general and the fundamental rights in particular goes only so far as the parliament wishes. Moreover, the practice of voluntary relinquishment of jurisdiction by courts magnifies the fact that judicial power is being eroded in Ethiopia. In most case, courts relinquished jurisdiction to hear a case merely because a given constitutional provision/right is said to be violated.

First, from the very beginning, there is no clear constitutional authority that justifies the legislature to partially restrict or totally remove judicial power. This is because, for one thing, removing court jurisdiction to hear cases of administrative grievances by making them non-justiciable is contrary to the entrenchment of individual rights enshrined under our constitution. To argue that the legislature can make rights non-justiciable any time it wishes makes the entrenchment of the rights under the constitution purposeless since the legislature in such case is with easy way to limit on the rights than to amend same provisions rigidly provided. Second, the legislature can take away judicial power from courts and vested to other institutions only if the institutions are required to follow legally prescribed procedures. In the case at hand however, the agency/the appellate commission is not one of the institutions that are intended to be established to exercise judicial function since there is no procedure it is required to follow.

## **5.2. Recommendations**

Based on the above mentioned findings, the writer forwards the following points as brief recommendations.

1. Considering the fact that there is no express constitutional limitation on the power of the legislature to limit the enjoyment of rights, constitutional amendment shall be made regarding such legislative powers so that restrictions over rights will be subject to predetermined general constitutional standards.
2. Constitutional amendment shall be made so that the issues as to which matters are justiciable and which are not, and who determines it will be clearly settled.
3. Reminding the fact that it is the only organ that can protect rights and jurisdiction of courts from being limited or deprived by the legislature, the CCI shall strive to develop an interpretive limit on the power of the legislature so that legislative power is exercised

within the implied and express restrictions that are enshrined in the constitution. It shall also make its decisions based on consistent, acceptable, and concrete reasoning that are morally defensible and constitutionally justifiable.

4. Recognizing that its main duty is to assist the HoF in ensuring the observance of the constitution, the CCI shall strive and make sure, while deciding cases, that parliamentary supremacy in Ethiopia is subject to constitutional supremacy.
5. Recalling the fact that its decision has a binding effect against all courts in the country on subsequent cases, the Federal Supreme Court Cassation Bench shall approach to laws that have adverse impact on judicial power in caution and shall not support the other branches. It shall employ general principles such as the separation of powers to guard judicial power from being eroded by other branches.
6. Recalling that they have constitutional responsibility to enforce chapter three of the constitution, ordinary courts shall not voluntarily relinquish their constitutionally vested jurisdiction to interpret a given constitutional provision to determine its scope, content and meaning for the purpose of applying it in a real case before them. They shall not simply make referral to the CCI/HoF for the mere fact that a given constitutional provision is said to be violated.
7. Since the Urban Lands Lease Holding Proclamation, Proclamation No. 721/2001 is clearly against the FDRE Constitution, it shall be amended so that it concurs with the provision of the Constitution.
8. Since the Courts are the independent organ of government which are established to interpret the laws except for the constitution, administrative remedies must be only a requirement to be exhausted, before going to courts, as the last resort.

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- W/ro Zelekawerk Bekele et al V. Agency for Government Houses, Federal Supreme Court Cassation Bench, file No.30704, decided on March 27, 2008